

SCHEDULE I

Section 5

TABLE F*

THE COMPANIES ACT, 2013

(COMPANY LIMITED BY SHARES)

ARTICLES OF ASSOCIATION

OF

GLASS WALL SYSTEMS (INDIA) LIMITED

This set of Articles of Association (the "Articles") has been approved pursuant to the provisions of Section 14 of the Companies Act, 2013 and by a special resolution passed at the Extra Ordinary General Meeting of Glass Wall Systems (India) Limited (the "Company") held on September 01, 2025. These Articles have been adopted as the Articles of Association of the Company in substitution for and to the exclusion of all the existing Articles thereof.

The Articles of Association of the Company comprise of two parts, Chapter-I and Chapter-II, which parts shall, unless the context otherwise requires, co-exist with each other until the commencement of the listing of equity shares of the Company pursuant to the initial public offering of the equity shares of the Company (the "Offer" of the "Equity Shares" of the Company). All articles of Chapter-II shall automatically terminate, without any further corporate or other action by the Company or by its shareholders, and cease to have any force and effect from the date of listing of Equity Shares of the Company on a recognized stock exchange in India pursuant to the Offer and the provisions of Chapter - I shall continue to be in effect and be in force, without any further corporate or other action, by the Company or by its shareholders.

CHAPTER - I

1. The Regulation contained in Table F of Schedule I of the Companies Act, 2013 amended and the exemptions (from time to time) granted, issued or notified by any governmental authority shall apply to the Company in so far as they are not inconsistent with any of the provisions contained in these regulations and except in so far as they are hereinafter expressly or impliedly excluded or modified in these Articles.
2. The Company is a Public Company within the meaning of Section 2 (71) of the Companies Act, 2013 (hereinafter called "the Act").

Share Capital and Variation of Rights

3. The Company may issue the following kinds of shares in accordance with these Articles, the Act and other applicable laws:
 - (a) Equity share capital:
 - (i) with voting rights; and/or
 - (ii) with differential rights as to dividend, voting or otherwise in accordance with the Act; and
 - (b) Preference share capital (as defined in Section 43 of the Act).

Subject to the provisions of the Act and these Articles, the shares in the capital of the company shall be under the control of the Directors who may issue, allot or otherwise dispose of the same or any of them to such persons, in such proportion and on such terms and conditions and either at a premium or at par or at a discount (subject to the compliance with the provision of Section 53 of the Act) and at such time as they may from time-to-time think fit and with sanction of the Company in the General Meeting to give to any person or persons the option or right to call for any shares either at par or premium during such time and for such consideration as the Directors think fit, and may issue and allot shares in the capital of the Company on payment in full or part of any property sold and transferred or for any services rendered to the Company in the conduct of its business and any shares which may so be allotted may be issued as fully paid up shares and if so issued, shall be deemed to be fully paid shares.

* Adopted vide Special Resolution passed at the Extra Ordinary General Meeting of



the Company held on September 01, 2025

Provided that option or right to call of shares shall not be given to any person or persons without the sanction of the Company in the General Meeting.

4. The Authorised Share Capital of the Company shall be such amount and be divided into such shares as may from time to time, be provided in clause V of Memorandum of Association with power to Board of Directors and by shareholders resolution to reclassify, subdivide, cancel, consolidate and increase and with power from time to time, to issue any shares of the original capital or any new capital with and subject to any preferential, qualified or special rights, privileges, or conditions may be, thought fit and upon the sub-division of shares to apportion the right to participate in profits, in any manner as between the shares resulting from sub-division.
5. The Board may issue and allot shares in the Capital of the Company for consideration other than cash.
 - (i) Every person whose name is entered as a member in the register of members shall be entitled to receive within two months after incorporation, in case of subscribers to the memorandum or after allotment or within one month after the application for the registration of transfer or transmission or within such other period as the conditions of issue shall be provided, but not later than three (3)
 - a. one certificate for all shares of each class or denomination registered in his name without payment of any charges; or several certificates, if the directors so approve, each for one or more shares of each class or denomination registered in his name, upon payment of twenty rupees for each certificate after the first and the Company shall complete and have ready for delivery such certificates within three months from the date of allotment, unless the conditions of issue thereof otherwise provide, or within two months of the receipt of application of registration of transfer, transmission, sub-division, consolidation or renewal of any of its shares as the case may be.
 - (ii) Every certificate of shares shall be under the seal of the Company and shall specify the number and distinctive number of shares in respect of which it is issued and the amount paid-up thereon and shall be in such form as the Directors may prescribe and approve and shall be signed by two directors or by a director and the company secretary, wherever the Company has appointed a company secretary or in any other manner as may be permitted by the Act.
 - (iii) In respect of any share or shares held jointly by several persons, the company shall not be bound to issue more than one certificate, and delivery of a certificate for a share to one of several joint holders shall be sufficient delivery to all such holders.
 - (iv) If a person opts to hold any shares with the depository, the Company shall intimate such depository the details of allotment of the shares to enable the depository to enter in its records the name of such person as the beneficial owner of that shares.
6. (i) If any share certificate be worn out, defaced, mutilated or torn or if there be no further space on the back thereof for endorsement of transfer, then upon production and surrender thereof to the company, a new certificate may be issued in lieu thereof, and if any certificate is lost or destroyed then upon proof thereof to the satisfaction of the company and on execution of such indemnity as the company deem adequate, being given, a new certificate in lieu thereof shall be given to the party entitled to such lost or destroyed certificate. Every certificate under this Article shall be issued without payment of fees if the Directors so decide, or on payment of twenty rupees for each certificate as the Directors shall prescribe. Provided that no fee shall be charged for issue of new certificates in replacement of those which are old, defaced or worn out or where there is no further space on the back thereof for endorsement of transfer.

Provided that notwithstanding what is stated above the Directors shall comply with such rules or regulation or requirements of any Stock Exchange or the rules made under the Act or rules made under Securities Contracts (Regulation) Act, 1956 or any other act, or rules applicable thereof in this behalf.

- (ii) The provisions of this Article shall *mutatis mutandis* apply to issue of Certificates for any other securities including debentures (except where the Act otherwise requires of the company).



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- (iii) Every Member shall be entitled, without payment to one or more certificates in marketable lots, for all the shares of each class or denomination registered in his name, or if the Directors so approve (upon paying such fee as the Directors so determine) to several certificates, each for one or more of such shares and the Company shall complete and have ready for delivery such certificates within two months from the date of allotment, unless the conditions of issue thereof otherwise provide, or within one month of the receipt of application of registration of transfer, transmission, sub-division, consolidation or renewal of any of its shares as the case may be. Every certificate of shares shall be under the seal of the Company and shall specify the number and distinctive numbers of shares in respect of which it is issued and amount paid-up thereon and shall be in such form as the Directors may prescribe and approve, provided that in respect of a share or shares held jointly by several persons, the Company shall not be bound to issue more than one certificate and delivery of a certificate of shares to one or several joint holders shall be a sufficient delivery to all such holders.

The Company shall cause to be kept a register and index of Members in accordance with all applicable provisions of the Act and the Depositories Act with details of shares held in physical and dematerialized forms in any medium as may be permitted by law including in any form of electronic medium.

7. Except as required by law, no person shall be recognised by the company as holding any share upon any trust, and the company shall not be bound by, or be compelled in any way to recognise (even when having notice thereof) any equitable, contingent, future or partial interest in any share, or any interest in any fractional part of a share, or (except only as by these regulations or by law otherwise provided) any other rights in respect of any share except an absolute right to the entirety thereof in the registered holder.
8. (i) The company may exercise the powers of paying commissions conferred by sub-section (6) of section 40, provided that the rate per cent or the amount of the commission paid or agreed to be paid shall be disclosed in the manner required by that section and rules made there under.
(ii) The rate or amount of the commission shall not exceed the rate or amount prescribed in rules made under sub-section (6) of section 40.
(iii) The commission may be satisfied by the payment of cash or the allotment of fully or partly paid shares or partly in the one way and partly in the other.
9. If at any time the share capital is divided into different classes of shares, the rights attached to any class (unless otherwise provided by the terms of issue of the shares of that class) may, subject to the provisions of section 48, and whether or not the company is being wound up, be varied with the consent in writing of the holders of three-fourths of the issued shares of that class, or with the sanction of a special resolution passed at a separate meeting of the holders of the shares of that class.
10. To every such separate meeting, the provisions of these regulations relating to general meetings shall mutatis mutandis apply, but so that the necessary quorum shall be at least five persons holding at least one-third of the issued shares of the class in question.
11. The rights conferred upon the holders of the shares of any class issued with preferred or other rights shall not, unless otherwise expressly provided by the terms of issue of the shares of that class, be deemed to be varied by the creation or issue of further shares ranking pari passu therewith.
12. Subject to the provisions of section 55 of the Act and Rules made in this behalf, any preference shares may, with the sanction of an ordinary resolution, be issued on the terms that they are to be redeemed on such terms and in such manner as the company before the issue of the shares may, by special resolution, determine.

Term of Issue of Debenture

13. Any debentures, debenture-stock or other securities may be issued at a discount, premium or otherwise and may be issued on condition that they shall be convertible into shares of any denomination and with any privileges and conditions as to redemption, surrender, drawing, allotment of shares, attending (but not voting) at the General Meeting, appointment of Directors and otherwise debentures with the right to conversion into or allotment of shares shall be issued only with the consent of the Company in the General Meeting by a special resolution.



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Lien

14. (i) The Company shall have a first and paramount lien—

- (a) on every share / debenture (not being a fully paid share / debenture), and upon the proceeds of sale thereof, for all monies (whether presently payable or not) called, or payable at a fixed time, in respect of that share / debenture; and
- (b) on all shares / debentures (not being fully paid shares / debentures) standing registered in the name of a single person, (whether solely or jointly with others), and upon the proceeds of sale thereof for all monies presently payable by him or his estate in respect of such shares / debentures to the company and no equitable interest in any share shall be created except upon the footing and condition that this Article will have full effect

Provided that the Board of directors may at any time declare any share to be wholly or in part exempt from the provisions of this clause.

(ii) The Company's lien, if any, on a share / debenture shall extend to all dividends payable and bonuses declared from time to time in respect of such shares / debentures.

The fully paid-up shares shall be free from all lien and in case of partly paid shares the Company's lien, shall be restricted to money's called or payable at a fixed time in respect of such shares.

(iii) The Company may sell, in such manner as the Board thinks fit, any shares on which the Company has a lien:

Provided that no sale shall be made—

- (a) unless a sum in respect of which the lien exists is presently payable; or until the expiration of fourteen days after a notice in writing stating and demanding payment of such part of the amount in respect of which the lien exists as is presently payable, has been given to the registered holder for the time being of the share or the person entitled thereto by reason of his death or insolvency.
- (b) (i) To give effect to any such sale, the Board may authorise some person to transfer the shares / debenture sold to the purchaser thereof.
(ii) The purchaser shall be registered as the holder of the shares / debenture comprised in any such transfer.
(iii) The purchaser shall not be bound to see to the application of the purchase money, nor shall his title to the shares be affected by any irregularity or invalidity in the proceedings in reference to the sale.
- (c) (i) The proceeds of the sale shall be received by the company and applied in payment of such part of the amount in respect of which the lien exists as is presently payable.
(ii) The residue, if any, shall, subject to a like lien for sums not presently payable as existed upon the shares / debentures before the sale, be paid to the person entitled to the shares at the date of the sale.

Unless otherwise agreed the registration of a transfer of shares / debentures shall operate as a waiver of the Company's lien, if any, on such shares / debentures.

Calls on Shares

15. (i) The Board may, from time to time, make calls upon the members in respect of any monies unpaid on their shares (whether on account of the nominal value of the shares or by way of premium) and not by the conditions of allotment thereof made payable at fixed times:

Provided that no call shall exceed one-fourth of the nominal value of the share or be payable at less than one month from the date fixed for the payment of the last preceding call.

- (ii) Each member shall, subject to receiving at least fourteen days' notice specifying the time or times and place of payment, pay to the company, at the time or times and place so specified, the amount called on his shares.
- (iii) A call may be revoked or postponed at the discretion of the Board.

16. A call shall be deemed to have been made at the time when the resolution of the Board authorising the call was passed and may be required to be paid by instalments.



17. The joint holders of a share shall be jointly and severally liable to pay all calls in respect thereof.
18. (i) If a sum called in respect of a share is not paid before or on the day appointed for payment thereof, the person from whom the sum is due shall pay interest thereon from the day appointed for payment thereof to the time of actual payment at ten per cent per annum or at such lower rate, if any, as the Board may determine.
- (ii) The Board shall be at liberty to waive payment of any such interest wholly or in part.
19. (i) Any sum which by the terms of issue of a share becomes payable on allotment or at any fixed date, whether on account of the nominal value of the share or by way of premium, shall, for the purposes of these regulations, be deemed to be a call duly made and payable on the date on which by the terms of issue such sum becomes payable.
- (ii) In case of non-payment of such sum, all the relevant provisions of these regulations as to payment of interest and expenses, forfeiture or otherwise shall apply as if such sum had become payable by virtue of a call duly made and notified.
20. The Board—
- (a) may, if it thinks fit, subject to the provisions of Section 50 of the Act, agree to and receive from any member willing to advance the same, all or any part of the monies uncalled and unpaid upon any shares held by him beyond the sums actually called for; and
- (b) upon all or any of the monies so advanced, or so much thereof as from time to time exceeds the amount of the calls then made upon the shares in respect of which such advance has been made, may (until the same would, but for such advance, become presently payable) pay interest at such rate not exceeding, unless the company in general meeting shall otherwise direct, twelve per cent per annum, as may be agreed upon between the Board and the member paying the sum in advance.
- Provided that money paid in advance of calls shall not confer a right to participate in profits or dividend. The Board may at any time repay the amount so advanced.
- (c) The members shall not be entitled to any voting rights in respect of the moneys so paid by him until the same would but for such payment, become presently payable.
- (d) The provisions of these Articles shall mutatis mutandis apply to the calls on debentures of the Company.

Transfer of Shares

21. The instrument of transfer of any share in the company shall be executed by or on behalf of both the transferor and transferee.
22. The transferor shall be deemed to remain a holder of the share until the name of the transferee is entered in the register of members in respect thereof.
23. The instrument of transfer shall be in writing and all provisions of Section 56 of the Act and statutory modification thereof for the time being shall be duly complied with in respect of all transfer of shares and registration thereof.
24. The Board may, subject to the right of appeal conferred by section 58 decline to register—
- (a) the transfer of a share, not being a fully paid share, to a person of whom they do not approve; or
- (b) any transfer of shares on which the company has a lien.
25. The Board may decline to recognise any instrument of transfer unless—
- (a) the instrument of transfer is in the form as prescribed in rules made under sub-section (1) of section 56;
- (b) the instrument of transfer is accompanied by the certificate of the shares to which it relates, and such other evidence as the Board may reasonably require to show the right of the transferor to make the transfer; and



(c) the instrument of transfer is in respect of only one class of shares.

26. Subject to the provisions of Section 58, these Articles and other applicable provisions of the Act or any other law for the time being in force, the Board may refuse whether in pursuance of any power of the Company under these Articles or otherwise to register the transfer of the right to any shares or interest of a member in or debentures of the Company.

The Company shall within one month from the date on which the instrument of transfer, was delivered to the Company, send notice of the refusal to the transferee and the transferor giving reasons for such refusal.

Provided that the registration of a transfer shall not be refused on the ground of the transferor being either alone or jointly with any other person or persons indebted to the Company on any account whatsoever except where the Company has a lien on shares.

27. On giving not less than seven days' previous notice in accordance with section 91 and rules made thereunder, the registration of transfers may be suspended at such times and for such periods as the Board may from time to time determine:
Provided that such registration shall not be suspended for more than thirty days at any one time or for more than forty-five days in the aggregate in any year.

28. No fee shall be charged for registration of transfer of shares.

29. A common form for registration of transfer of shares shall be used by the Company, as prescribed under the Act and rules notified thereunder and as per applicable requirements specified by the Stock Exchanges.

The provisions of these Articles relating to transfer of shares shall mutatis mutandis apply to any other securities including debentures of the Company.

Transmission of Shares

30. (i) On the death of a member, the survivor or survivors where the member was a joint holder, and his nominee or nominees or legal representatives where he was a sole holder, shall be the only persons recognised by the Company as having any title to his interest in the shares.

(ii) Nothing in clause (i) shall release the estate of a deceased joint holder from any liability in respect of any share which had been jointly held by him with other persons.

31. (i) Any person becoming entitled to a share in consequence of the death or insolvency of a member may, upon such evidence being produced as may from time to time properly be required by the Board and subject as hereinafter provided, elect, either—

- a) to be registered himself as holder of the share; or
- b) to make such transfer of the share as the deceased or insolvent member could have made.

(ii) The Board shall, in either case, have the same right to decline or suspend registration as it would have had, if the deceased or insolvent member had transferred the share before his death or insolvency.

32. (i) If the person so becoming entitled shall elect to be registered as holder of the share himself, he shall deliver or send to the company a notice in writing signed by him stating that he so elects.

(ii) If the person aforesaid shall elect to transfer the share, he shall testify his election by executing a transfer of the share.

(iii) All the limitations, restrictions and provisions of these regulations relating to the right to transfer and the registration of transfers of shares shall be applicable to any such notice or transfer as aforesaid as if the death or insolvency of the member had not occurred and the notice or transfer were a transfer signed by that member.

33. A person becoming entitled to a share by reason of the death or insolvency of the holder shall be entitled to the same dividends and other advantages to which he would be entitled if he were the registered holder of the share, except that he shall not, before being registered as a member in respect of the share, be entitled in respect of it to exercise any



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right conferred by membership in relation to meetings of the company:

Provided that the Board may, at any time, give notice requiring any such person to elect either to be registered himself or to transfer the share, and if the notice is not complied with within ninety days, the Board may thereafter withhold payment of all dividends, bonuses or other monies payable in respect of the share, until the requirements of the notice have been complied with.

34. Subject to the provisions of Section 58, these Articles and other applicable provisions of the Act or any other law for the time being in force, the Board may refuse whether in pursuance of any power of the Company under these Articles or otherwise to register the transmission by operation of law of the right to, any shares or interest of a member in or debentures of the Company.

The Company shall within one month from the date on which the intimation of such transmission was delivered to the Company, send notice of the refusal to the person giving intimation of such transmission, as the case may be, giving reasons for such refusal.

35. No fee shall be charged for registration of transmission of shares (in cases of probate, succession certificate and letters of administration, certificate of death or marriage, power of attorney or similar other document).

The provisions of these Articles relating to transmission by operation of law shall mutatis mutandis apply to any other securities including debentures of the Company.

Forfeiture of Shares

36. If a member fails to pay any call, or instalment of a call, on the day appointed for payment thereof, the Board may, at any time thereafter during such time as any part of the call or instalment remains unpaid, serve a notice on him requiring payment of so much of the call or instalment as is unpaid, together with any interest which may have accrued.
37. The notice aforesaid shall—
- name a further day (not being earlier than the expiry of fourteen days from the date of service of the notice) on or before which the payment required by the notice is to be made; and
 - state that, in the event of non-payment on or before the day so named, the shares in respect of which the call was made shall be liable to be forfeited.
38. If the requirements of any such notice as aforesaid are not complied with, any share in respect of which the notice has been given may, at any time thereafter, before the payment required by the notice has been made, be forfeited by a resolution of the Board to that effect.
39. (i) A forfeited share may be sold or otherwise disposed of on such terms and in such manner as the Board thinks fit.
- (ii) At any time before a sale or disposal as aforesaid, the Board may cancel the forfeiture on such terms as it thinks fit.
40. (i) A person whose shares have been forfeited shall cease to be a member in respect of the forfeited shares, but shall, notwithstanding the forfeiture, remain liable to pay to the company all monies which, at the date of forfeiture, were presently payable by him to the company in respect of the shares.
- (ii) The liability of such person shall cease if and when the company shall have received payment in full of all such monies in respect of the shares.
41. (i) A duly verified declaration in writing that the declarant is a director, the manager or the secretary, of the company, and that a share in the company has been duly forfeited on a date stated in the declaration, shall be conclusive evidence of the facts therein stated as against all persons claiming to be entitled to the share;
- (ii) The company may receive the consideration, if any, given for the share on any sale or disposal thereof and may execute a transfer of the share in favour of the person to whom the share is sold or disposed of;
- (iii) The transferee shall thereupon be registered as the holder of the share; and
- (iv) The transferee shall not be bound to see to the application of the purchase money, if



any, nor shall his title to the share be affected by any irregularity or invalidity in the proceedings in reference to the forfeiture, sale or disposal of the share.

42. The provisions of these regulations as to forfeiture shall apply in the case of non-payment of any sum which, by the terms of issue of a share, becomes payable at a fixed time, whether on account of the nominal value of the share or by way of premium, as if the same had been payable by virtue of a call duly made and notified.

Alteration of Capital

43. The company may, from time to time, by ordinary resolution increase the share capital by such sum, to be divided into shares of such amount, as may be specified in the resolution.
44. Subject to the provisions of section 61, the company may, by ordinary resolution,—
- (a) consolidate and divide all or any of its share capital into shares of larger amount than its existing shares;
 - (b) convert all or any of its fully paid-up shares into stock, and reconvert that stock into fully paid-up shares of any denomination;
 - (c) sub-divide its existing shares or any of them into shares of smaller amount than is fixed by the memorandum;
 - (d) cancel any shares which, at the date of the passing of the resolution, have not been taken or agreed to be taken by any person.
45. Where shares are converted into stock, —

- (a) the holders of stock may transfer the same or any part thereof in the same manner as, and subject to the same regulations under which, the shares from which the stock arose might before the conversion have been transferred, or as near thereto as circumstances admit:

Provided that the Board may, from time to time, fix the minimum amount of stock transferable, so, however, that such minimum shall not exceed the nominal amount of the shares from which the stock arose.

- (b) the holders of stock shall, according to the amount of stock held by them, have the same rights, privileges and advantages as regards dividends, voting at meetings of the company, and other matters, as if they held the shares from which the stock arose; but no such privilege or advantage (except participation in the dividends and profits of the company and in the assets on winding up) shall be conferred by an amount of stock which would not, if existing in shares, have conferred that privilege or advantage.
 - (c) such of the regulations of the company as are applicable to paid-up shares shall apply to stock and the words "share" and "shareholder" in those regulations shall include "stock" and "stock-holder" respectively.
46. The company may, by special resolution, reduce in any manner and with, and subject to, any incident authorised and consent required by law, —
- (a) its share capital;
 - (b) any capital redemption reserve account; or
 - (c) any share premium account.

Further Issue of Share

47. Where at any time after the expiry of two years from the formation of the company or at any time after the expiry of one year from the allotment of shares in the company made for the first time after its formation, whichever is earlier, it is proposed to increase the subscribed capital of the Company by allotment of further shares then:
- (a) Such further shares shall be offered to the persons who, at the date of the offer, are holders of the equity shares of the company, in proportion, as nearly as circumstances admit, to the capital paid-up on those shares at that date by sending a letter of offer subject to the following conditions, namely:
 - (i) The offer aforesaid shall be made by a notice specifying the number of shares offered and limiting a time not being less than fifteen days or lesser number of days as may be prescribed and not exceeding thirty days from the date of the offer within which the offer, if not accepted, will be deemed to have been declined;



Provided that the notice shall be dispatched through electronic mode or courier or any other mode having proof of delivery to all the existing shareholders at least three days before the opening of the issue

- (ii) The offer aforesaid shall be deemed to include a right exercisable by the person concerned to renounce the shares offered to him or any of them in favour of any other person and the notice referred to in sub-clause (b) shall contain a statement of this right;
 - (iii) After the expiry of the time specified in the notice aforesaid, or on receipt of earlier intimation from the person to whom such notice is given that he declines to accept the shares offered, the Board of Directors may dispose of them in such manner which is not dis-advantageous to the shareholders and the Company.
48. Notwithstanding anything contained in Article (47) the further shares aforesaid may be offered to employees under a scheme of employee's stock option subject to special resolution passed by the Company and the conditions as prescribed under the Companies Act.
49. Notwithstanding anything contained in Article (47) the further shares aforesaid may be offered to any persons (whether or not those persons include the persons referred to in Article (47)(a) and Article (48) hereof) as prescribed under applicable Law, from time to time.
50. Nothing in Article (47)(iii) hereof shall be deemed:
- I. To extend the time within which the offer should be accepted; or
 - II. To authorize any person to exercise the right of renunciation for a second time, on the ground that the person in whose favour the renunciation was first made has declined to take the shares comprised in the renunciation.
51. Nothing in Articles 47 to 50 shall apply to the increase of the subscribed capital of the Company caused by the exercise of an option attached to the debentures issued by the Company:
- I. To convert such debentures or loans into shares in the Company; or
 - II. To subscribe for shares in the Company.

Provided that the terms of issue of such debentures or the terms of such loans include a term providing for such option and such term have been approved before the issue of such debentures or the raising of loan by a special resolution passed by the Company in general meeting.

52. Notwithstanding anything contained in Article 51, where any debentures have been issued, or loan has been obtained from any Government by the Company and if that Government considers it necessary in the public interest to do so, it may, by order, direct that such debentures or loans or any part thereof shall be converted into shares on such terms and conditions, and in accordance with applicable Law, as appear reasonable to the Government even if the terms of issue of such debentures or the raising of such loans do not include a term for providing for such conversions.

Capitalisation of Profits

53. (i) The company in general meeting may, upon the recommendation of the Board, resolve—
- (a) that it is desirable to capitalise any part of the amount for the time being standing to the credit of any of the company's reserve accounts, or to the credit of the profit and loss account, or otherwise available for distribution; and
 - (b) that such sum be accordingly set free for distribution in the manner specified in clause (ii) amongst the members who would have been entitled thereto, if distributed by way of dividend and in the same proportions.
- (ii) The sum aforesaid shall not be paid in cash but shall be applied, subject to the provision contained in clause (iii), either in or towards—
- (A) paying up any amounts for the time being unpaid on any shares held by such members respectively;



- (B) paying up in full, unissued shares of the company to be allotted and distributed, credited as fully paid-up, to and amongst such members in the proportions aforesaid;
- (C) partly in the way specified in sub-clause (a) and partly in that specified in sub-clause (b);
- (D) A securities premium account and a capital redemption reserve account may, for the purposes of this regulation, be applied in the paying up of unissued shares to be issued to members of the company as fully paid bonus shares;
- (E) The Board shall give effect to the resolution passed by the company in pursuance of this regulation.

54. (i) Whenever such a resolution as aforesaid shall have been passed, the Board shall—
- (a) make all appropriations and applications of the undivided profits resolved to be capitalised thereby, and all allotments and issues of fully paid shares if any; and
 - (b) generally, do all acts and things required to give effect thereto.
- (ii) The Board shall have power—
- (a) to make such provisions, by the issue of fractional certificates or by payment in cash or otherwise as it thinks fit, for the case of shares becoming distributable in fractions; and
 - (b) to authorise any person to enter, on behalf of all the members entitled thereto, into an agreement with the company providing for the allotment to them respectively, credited as fully paid-up, of any further shares to which they may be entitled upon such capitalisation, or as the case may require, for the payment by the company on their behalf, by the application thereto of their respective proportions of profits resolved to be capitalised, of the amount or any part of the amounts remaining unpaid on their existing shares;
- (iii) Any agreement made under such authority shall be effective and binding on such members.

Buy-back of Shares

55. Notwithstanding anything contained in these articles but subject to the provisions of sections 68 to 70 and any other applicable provision of the Act or any other law for the time being in force, the company may purchase its own shares or other specified securities.

General Meetings

56. All general meetings other than annual general meeting shall be called extraordinary general meeting.
57. The Company shall in each year hold a General Meeting as its Annual General Meeting in addition to any other meeting in that year and not more than fifteen months shall elapse between the dates of two annual general meetings.
58. The Board of Directors may call an Extra Ordinary General Meeting on their own accord or on the requisition of members pursuant to provisions of the Act.
59. *General Meeting may be called after giving shorter Notice. Prior written notice of at least 21 (twenty one) days for convening a general meeting of the Shareholders shall be given to all of the Shareholders. A general meeting may however be called by the Board on less than 21 (twenty one) days prior written notice, with the prior written consent of not less than 95% (ninety five percent) of the Shareholders entitled to vote at such meeting and such other consents as are required under the Act. Every notice shall be accompanied by the agenda setting out the particular business proposed to be transacted at the general meeting.
60. *Matters requiring a Simple Majority shall be decided by the affirmative vote of Members holding more than fifty percent (50%) of the voting rights represented by the votes cast by the Members entitled to vote. Matters requiring a Special Majority shall be decided by the affirmative vote of Members holding not less than seventy-five percent (75%) of the voting rights represented by the votes cast by the Members entitled to vote.

** Adopted vide Special Resolution passed at the Annual General Meeting of the Company held on August 17, 2026*



Proceedings at General Meetings

61. (i) No business shall be transacted at any general meeting unless a quorum of members is present at the time when the meeting proceeds to business.

(ii) Save as otherwise provided herein, the quorum for the general meetings shall be as provided in Section 103 of the Act.

The chairperson, if any, of the Board shall preside as Chairperson at every general meeting of the Company.

62. If there is no chairperson, or if he is not present within fifteen minutes after the time appointed for holding the meeting or is unwilling to act as chairperson of the meeting, the Directors present shall elect one of their members to be Chairperson of the meeting.

63. If at any meeting no Director is willing to act as Chairperson or if no Director is present within fifteen minutes after the time appointed for holding the meeting, the members present shall choose one of their members to be Chairperson of the meeting.

Adjournment of Meeting

64. (i) The Chairperson may, with the consent of any meeting at which a quorum is present, and shall, if so, directed by the meeting, adjourn the meeting from time to time and from place to place.

(ii) No business shall be transacted at any adjourned meeting other than the business left unfinished at the meeting from which the adjournment took place.

(iii) When a meeting is adjourned for thirty days or more, notice of the adjourned meeting shall be given as in the case of an original meeting.

(iv) Save as aforesaid, and as provided in Section 103 of the Act, it shall not be necessary to give any notice of an adjournment or of the business to be transacted at an adjourned meeting.

Voting Rights

65. Subject to any rights or restrictions for the time being attached to any class or classes of shares,

(a) on a show of hands, every member present in person shall have one vote; and

(b) on a poll, the voting rights of members shall be in proportion to his share in the paid-up equity share capital of the Company.

66. A member may exercise his vote at a meeting by electronic means in accordance with Section 108 of the Act and shall vote only once.

67. (a) In the case of joint holders, the vote of the senior who tenders a vote, whether in person or by proxy, shall be accepted to the exclusion of the votes of the other joint holders.

(b) For this purpose, seniority shall be determined by the order in which the names stand in the register of members.

68. A member of unsound mind, or in respect of whom an order has been made by any court having jurisdiction in lunacy, may vote, whether on a show of hands or on a poll, by his committee or other legal guardian, and any such committee or guardian may, on a poll, vote by proxy.

69. Any business other than that upon which a poll has been demanded may be proceeded with, pending the taking of the poll. No member shall be entitled to vote at any general meeting unless all calls or other sums presently payable by him in respect of shares in the Company have been paid.

70. (a) No objection shall be raised to the qualification of any voter except at the meeting or adjourned meeting at which the vote objected to is given or tendered, and every vote not disallowed at such meeting shall be valid for all purposes.

(b) Any such objection made in due time shall be referred to the chairperson of the meeting.



whose decision shall be final and conclusive.

Proxy

71. The instrument appointing a proxy and the power-of-attorney or other authority, if any, under which it is signed or a notarized copy of that power or authority, shall be deposited at the registered office of the Company not less than 48 hours before the time for holding the meeting or adjourned meeting at which the person named in the instrument proposes to vote, or, in the case of a poll, not less than 24 hours before the time appointed for the taking of the poll; and in default the instrument of proxy shall not be treated as valid.

Provided, in case the meeting conducted at a shorter notice, the above-mentioned period of depositing proxy shall be decided by the Board of Directors.

72. An instrument appointing a proxy shall be in the form as prescribed in the rules made under Section 105 of the Act.
73. A vote given in accordance with the terms of an instrument of proxy shall be valid, notwithstanding the previous death or insanity of the principal or the revocation of the proxy or of the authority under which the proxy was executed, or the transfer of the shares in respect of which the proxy is given:

Provided that no intimation in writing of such death, insanity, revocation or transfer shall have been received by the Company at its office before the commencement of the meeting or adjourned meeting at which the proxy is used.

Board of Directors

74. The first Director of the Company shall be the persons named hereunder: -
- a. **Mr. Jawahar Hariram Hemrajani**
 - b. **Mr. Kamlesh Arjun Choudhary**
75. The number of the directors shall not be less than three (3) and not more than fifteen (15) and at least one (1) Director shall be resident of India in the previous year. The Company may from time to time by Special Resolution increase or reduce the number of directors within the maximum limits fixed by these Articles. The Board of the Company shall include such number of independent Directors ("Independent Directors") as prescribed under applicable Laws.
76. (i) The remuneration of the Directors shall, in so far as it consists of a monthly payment, be deemed to accrue from day-to-day.
- (ii) In addition to the remuneration payable to them in pursuance of the Act, the Directors may be paid all travelling, hotel and other expenses properly incurred by them—
- (a) in attending and returning from meetings of the Board or any committee thereof or general meetings of the company; or
 - (b) in connection with the business of the company.
77. The Board may pay all expenses incurred in getting up and registering the company.
78. The company may exercise the powers conferred on it by Section 88 of the Act with regard to the keeping of a foreign register; and the Board may (subject to the provisions of that section) make and vary such regulations, as it may think fit in respect of keeping of any such register.
79. All cheques, promissory notes, drafts, hundis, bills of exchange and other negotiable instruments, and all receipts for monies paid to the company, shall be signed, drawn, accepted, endorsed, or otherwise executed, as the case may be, by such person and in such manner as the Board shall from time to time by resolution determine.
80. Every Director present at any meeting of the Board or of a committee thereof shall sign his name in a book to be kept for that purpose.
81. (i) Subject to the provisions of section 149, the Board shall have power at any time, and from time to time, to appoint a person as an additional director, provided the number of the directors and additional directors together shall not at any time exceed the maximum



strength fixed for the Board by the articles.

(ii) Such person shall hold office only up to the date of the next annual general meeting of the company but shall be eligible for appointment by the company as a director at that meeting subject to the provisions of the Act.

82. Pursuant to Section 152 of the Act, not less than 2/3rd (two-third) of the total number of Directors (excluding the Independent Directors) of the Company shall be the persons whose period of office is liable to determination by retirement of directors by rotation and save as otherwise expressly provided in the Act and these Articles, be appointed by the Company in general meeting.
83. At the Annual General Meeting of the Company to be held every year, one third of such of the Directors as are liable to retire by rotation for time being, or, if their number is not three or a multiple of three then the number nearest to one third shall retire from office, and they will be eligible for re-election.
84. A Director of the Company shall not be required to hold any qualification share.
85. The fees of the directors for attending meeting of the Board of Directors and other services rendered to the Company may be fixed by the Board of Director from time to time as per the provisions of the Companies Act, 2013.
86. The Board may, from time to time, and at its discretion, subject to the provisions of the Act and these Articles, accept deposits from Shareholders either in advance of calls or otherwise and generally raise or borrow moneys, either from the Directors, their friends and relatives or from others for the purposes of the Company and/or secure the payment of any such sum or sums of money, provided however, where the moneys to be borrowed together with the moneys already borrowed by the Company (apart from the temporary loans obtained from the Company's bankers in ordinary course of business) and remaining outstanding and undischarged at that time exceed the aggregate of the paid-up capital of the Company its free reserves and security premium. (not being reserves set apart for any specific purpose), the Board shall not borrow such money without the consent of the Company in a General Meeting by a Special resolution. The Board may raise and secure the payment of such sum or sums in such manner and upon such terms and conditions as it thinks fit, and in particular by receiving deposits, issue of bonds, debentures perpetual, redeemable, debenture stock, or any security of the Company or by mortgage or charge or other security upon all or any part of the property or undertaking of the Company (both present and future), including its uncalled capital for the time being; provided that the Board shall not give any option or right to any person for making calls on the Shareholders in respect of the amount unpaid for the time being on the Shares held by them, without the previous sanction of the Company in a General Meeting.
87. The Board may, appoint a person, not being a person holding any alternate directorship for any other director in the Company, to act as an Alternate Director for a director during his absence for a period of not less than 3 (three) months from India (hereinafter in this Article called the "Original Director"). An Alternate Director shall not hold office for a period longer than that permissible to the Original Director in whose place he has been appointed and shall vacate the office if and when the Original Director returns to India. If the term of office of the Original Director is determined before he returns to India, the automatic re-appointment of retiring directors in default of another appointment shall apply to the Original Director and not to the Alternate Director.
88. Subject to the provision of the Act, or any statutory modifications thereof from time to time, the Board shall have power at any time and from time to time to appoint any other person to be an additional Director but the total number of Directors shall not any time exceed the maximum fixed under this Articles of Association. Any such additional Director shall hold office only up to the date of the next Annual General Meeting.
89. If the office of any Director appointed by the Company in General Meeting is vacated before his term of office expires in the normal course, the resulting casual vacancy may, be filled by the Board of Directors at a meeting of the Board which shall be subsequently approved by Members in the immediate next General Meeting. The director so appointed shall hold office only up to the date which the director in whose place he is appointed would have held office if it had not been vacated.
90. A retiring Director shall be eligible for re-election and the Company, at the Annual General Meeting at which a Director retires in the manner aforesaid, may fill up the vacated office by electing a person thereto.



91. The Directors to retire in every year shall be those who have been longest in office since their last election, but as between persons who became Directors on the same day, those to retire shall (unless they otherwise agree among themselves) be determined by lots.
92. Subject to the provisions of the Act, the Company may by an Ordinary Resolution in General Meeting, remove any Director before the expiration of his period of office and may, by an Ordinary Resolution, appoint another person instead.
93. Provided that an Independent Director appointed and re-appointed under the provisions of the Act shall be removed by the Company only by passing a Special Resolution and after giving him a reasonable opportunity of being heard and the Company may by a Special Resolution appoint another Independent Director instead.
94. The Company in General Meeting may, when appointing a person as a Director declare that his continued presence on the Board of Directors is of advantage to the Company and that his office as Director shall not be liable to be determined by retirement by rotation for such period until the happening of any event of contingency set out in the said resolution.

Proceedings of the Board

95. (1) The Board of Directors may meet for the conduct of business, adjourn and otherwise regulate its meetings, as it thinks fit.

(2) Any Director of the Company may, and the manager and secretary or where there is no Company Secretary, any other person authorized by the Board in this behalf on the requisition of a Director shall, at any time, summon a meeting of the Board.
96. Notice of every meeting of the Board of Directors shall be given in writing to every Director for the time being in India, and at his usual address in India or by Electronic Mode at his email address registered with the Company to every other Director. The quorum for the meetings of the Board of Directors of the Company shall be as prescribed under the Act.

Save as otherwise expressly provided in the Act, questions arising at any meeting of the Board shall be decided by a majority of votes.
97. The continuing Directors may act notwithstanding any vacancy in the Board; but, if and so long as their number is reduced below the quorum fixed by the Act for a meeting of the Board, the continuing Directors or Director may act for the purpose of increasing the number of Directors to that fixed for the quorum, or of summoning a general meeting of the Company, but for no other purpose.
98. (1) The Board may elect a chairperson of its meetings and determine the period for which he is to hold office.

(2) If no such Chairperson is elected, or if at any meeting the Chairperson is not present within five minutes after the time appointed for holding the meeting, the Directors present may choose one of their number to be Chairperson of the meeting.
99. (1) The Board may, subject to the provisions of the Act, delegate any of its powers to committees consisting of such member or members of its body as it thinks fit.

(2) Any committee so formed shall, in the exercise of the powers so delegated, conform to any regulations that may be imposed on it by the Board.
 - i) A committee may elect a chairperson of its meetings.
 - ii) If no such Chairperson is elected, or if at any meeting the Chairperson is not present within five minutes after the time appointed for holding the meeting, the members present may choose one of their members to be Chairperson of the meeting.
100. (1) A committee may meet and adjourn as it thinks fit.

(2) Questions arising at any meeting of a committee shall be determined by a majority of votes of the members present.
101. All acts done in any meeting of the Board or of a committee thereof or by any person acting as a Director, shall, notwithstanding that it may be afterwards discovered that there was some defect in the appointment of any one or more of such Directors or of



any person acting as aforesaid, or that they or any of them were disqualified, be as valid as if every such Director or such person had been duly appointed and was qualified to be a Director. Save as otherwise expressly provided in the Act, a resolution shall be as valid and effectual as if it had been passed by the Board or committee thereof, if the draft thereof in writing is circulated with the necessary papers if any, to all Directors or members of the committee of the Board (including alternate Director) as the case may be, at the usual address whether in or outside India or through electronic mode at the usual email addresses, and has been approved by a majority of those as are entitled to vote on the resolution.

Chief Executive Officer, Manager, Company Secretary or Chief Financial Officer

102. Subject to the provisions of the Act,—

- (i) A chief executive officer, manager, company secretary or chief financial officer may be appointed by the Board for such term, at such remuneration and upon such conditions as it may think fit; and any chief executive officer, manager, company secretary or chief financial officer so appointed may be removed by means of a resolution of the Board;
- (ii) A director may be appointed as chief executive officer, manager, company secretary or chief financial officer.

103. Wherever in the Act, it has been provided that a company shall have any right, privilege or authority or that a company may carry out a particular transaction only if authorised by the articles of the company, in that case the Company is hereby authorised and empowered to have such right, privilege or authority and to carry out such transactions as has been permitted by the Act including the right to exclude any provisions of the Act, even if there is no specific regulation in that behalf in the Articles.

104. A provision of the Act or these regulations requiring or authorising a thing to be done by or to a director and chief executive officer, manager, company secretary or chief financial officer shall not be satisfied by its being done by or to the same person acting both as director and as, or in place of, chief executive officer, manager, company secretary or chief financial officer.

The Seal

105. (i) The Board shall provide for the safe custody of the seal.

(ii) The seal of the company shall not be affixed to any instrument except by the authority of a resolution of the Board or of a committee of the Board authorised by it in that behalf, and except in the presence of at least two directors and of the secretary or such other person as the Board may appoint for the purpose; and those two directors and the secretary or other person aforesaid shall sign every instrument to which the seal of the company is so affixed in their presence.

Dividends and Reserve

106. The company in general meeting may declare dividends, but no dividend shall exceed the amount recommended by the Board.

107. Subject to the provisions of section 123, the Board may from time to time pay to the members such interim dividends as appear to it to be justified by the profits of the company.

108. (i) The Board may, before recommending any dividend, set aside out of the profits of the Company such sums as it thinks fit as a reserve or reserves which shall, at the discretion of the Board, be applicable for any purpose to which the profits of the Company may be properly applied, including provision for meeting contingencies or for equalizing dividends; and pending such application, may, at the like discretion, either be employed in the business of the Company or be invested in such investments (other than shares of the Company) as the Board may, from time to time, think fit.

(ii) The Board may also carry forward any profits which it may consider necessary not to divide, without setting them aside as a reserve.

109. (i) Subject to the rights of persons, if any, entitled to shares with special rights as to dividends, all dividends shall be declared and paid according to the amounts paid or credited as paid on the shares in respect whereof the dividend is paid, but if and so long as nothing



is paid upon any of the shares in the Company, dividends may be declared and paid according to the amounts of the shares.

(ii) No amount paid or credited as paid on a share in advance of calls shall be treated for the purposes of this regulation as paid on the share.

(iii) All dividends shall apportion and paid proportionately to amounts paid or credited as paid on the shares during any portion or portions of the period in respect of which the dividend is paid; but if any share is issued on terms providing that it shall rank for dividend as from a particular date such share shall rank for dividend accordingly.

110. The Board may deduct from any dividend payable to any member all sums of money, if any, presently payable by him to the Company on account of calls or otherwise in relation to the shares of the Company.
111. (i) Any dividend, interest or other monies payable in cash in respect of shares maybe paid by cheque or warrant sent through the post directed to the registered address of the holder or, in the case of joint holders, to the registered address of that one of the joint holders who is first named on the register of members, or to such person and to such address as the holder or joint holders may in writing direct.
- (ii) Every such cheque or warrant shall be made payable to the order of the person to whom it is sent.
112. Any one of two or more joint holders of a share may give effective receipts for any dividends, bonuses or other monies payable in respect of such share. Notice of any dividend that may have been declared shall be given to the persons entitled to share therein in the manner mentioned in the Act. No dividend shall bear interest against the Company.
113. Where the Company has declared a dividend but which has not been paid or claimed within 30 days from the date of declaration, transfer the total amount of dividend which remains unpaid or unclaimed within the said period of 30 days, to a special account to be opened by the Company in that behalf in any scheduled bank, to be called "unpaid dividend account"
114. Any money transferred to the unpaid dividend account of a Company which remains unpaid or unclaimed for a period of seven years from the date of such transfer, shall be transferred by the Company to the Fund known as Investor Education and Protection Fund established under section 125 of the Act.
115. No unclaimed or unpaid dividend shall be forfeited by the Board.

Capitalization

116. Subject to the provisions of the Act and these Articles of Association, if resolved at the General Meeting any monies, investments or assets, forming part of undivided profits, standing to the credit of reserve fund at the disposal of the Company and available for dividend (or as share premium Account) be capitalized and distributed among the members who are entitled for dividend and in the same proportion be applied to make the partly paid shares as fully paid bonus shares or partly in one way and partly in other.

ESOP Equity

117. Subject to the provisions of the Act, read with Rule 12 of the Companies (Share Capital and Debentures) Rules, 2014 or any statutory modification thereof from time to time and all other applicable laws, if any, the company may from time to time issue any securities including equity shares, preference shares whether convertible into equity or not, debenture, whether convertible into equity or not, as shares, warrants and/or any other securities under any Employee Stock Option Plan or Scheme (ESOP), to the eligible employees, working directors and others as may be approved by the Board or Committee of Directors authorized by the Board in this regard.

General Power

118. Where in any provisions of the Act any other statute or law, it has been provided that the Company shall have any right, privilege or authority or that the Company could carry out any transaction only if the Company is so authorized by its Articles in every such case, this regulation hereby authorizes and empowers the Company to have such right, privilege or authority and to carry out such transactions as have been permitted by the Act, without there being any specific regulation in that behalf herein provided.



Handwritten signature in blue ink.



Accounts

119. (i) The Board shall from time to time determine whether and to what extent and at what times and places and under what conditions or regulations, the accounts and books of the company, or any of them, shall be open to the inspection of members not being directors.
- (ii) No member (not being a director) shall have any right of inspecting any account or book or document of the company except as conferred by law or authorised by the Board or by the company in general meeting.

Winding up

120. Subject to the provisions of Chapter XX of the Act and rules made thereunder—
- (i) If the company shall be wound up, the liquidator may, with the sanction of a special resolution of the company and any other sanction required by the Act, divide amongst the members, in specie or kind, the whole or any part of the assets of the company, whether they shall consist of property of the same kind or not.
- (ii) For the purpose aforesaid, the liquidator may set such value as he deems fair upon any property to be divided as aforesaid and may determine how such division shall be carried out as between the members or different classes of members.
- (iii) The liquidator may, with the like sanction, vest the whole or any part of such assets in trustees upon such trusts for the benefit of the contributories if he considers necessary, but so that no member shall be compelled to accept any shares or other securities whereon there is any liability.

Indemnity

121. Every officer of the company shall be indemnified out of the assets of the company against any liability incurred by him in defending any proceedings, whether civil or criminal, in which judgment is given in his favour or in which he is acquitted or in which relief is granted to him by the court or the Tribunal.

General Authority

122. Where the Act requires that the Company cannot undertake any act or exercise any rights or powers or privilege or authority, unless expressly authorised by its Articles, these Articles shall in relation to the Company, be deemed to confer such right, authority or power or privilege and to carry out such transaction as have been permitted by the Act.

LOCK-IN OF SHARES OF THE COMPANY

***122A (i)** Notwithstanding anything to the contrary contained in these Articles, and as required under the applicable laws including the Securities and Exchange Board of India (Issue of Capital and Disclosure Requirements) Regulations, 2018, as amended, or re-enacted or replaced from time to time ("**SEBI ICDR Regulations**"), where any equity shares held by persons other than promoters of the Company are required to be locked-in under the applicable laws, including under Regulation 17 of the SEBI ICDR Regulations and such lock-in cannot be created or recorded by Depositories for any reason whatsoever including where such equity shares are (a) subject to pledge; or (b) under "freeze balance" or "safekeep balance", or (c) any other form of encumbrance as may be recorded with the Depositories, on a day prior to the commencement of the Lock-in Period, the Company shall, in accordance with Regulation 17(2) of the SEBI ICDR Regulations, have the power to issue instructions to the Depositories, directing them to record such equity shares as "non-transferable" for the duration of the applicable Lock-in Period. The aforementioned equity shares shall be treated as locked-in for the Lock-in Period as specified under the relevant applicable laws, including the SEBI ICDR Regulations.

(ii) In the event of invocation of the pledge of such equity shares by the pledgee, or exercise of lien on such equity shares by any person pursuant to an order or directions of any court, tribunal, any government agency, Securities and Exchange Board of India or any other authority made or given under any law for the time being in force, whether in whole or in part, the equity shares so transferred or received by the pledgee upon such invocation or by such other person upon exercise of lien shall continue to remain locked-in in the account of the pledgee for the balance Lock-in Period.

** Adopted vide Special Resolution passed at the Annual General Meeting of the Company held*



on August 17, 2026

(iii) In the event of release of the pledge of such equity shares by the pledgee, whether in whole or in part, the equity shares so released shall continue to remain locked-in in the account of the pledgor for the balance Lock-in Period.

For the purposes of this Article, "**Lock-in Period**" shall mean the period, as prescribed under the applicable laws and in case of an initial public offering, for which the entire pre-listing capital of the company held by persons other than the promoters is required to be locked-in, in accordance with the Regulation 17(1) of the SEBI ICDR Regulations.

The Board may take all steps, furnish all declarations and issue all instructions necessary to implement such lock-in and to remove such marking upon expiry of the relevant lock-in period or as otherwise permitted under applicable laws.



CHAPTER - II

PROVISIONS PURSUANT TO INVESTMENT AGREEMENT, INVESTMENT AMENDMENT AGREEMENT AND AMENDED AND RESTATED INVESTMENT AGREEMENT INSERTED AS ARTICLE NOS. 123 – 189 AND SCHEDULES 1, AND 2, VIDE SPECIAL RESOLUTION PASSED UNDER THE COMPANIES ACT, 2013 BY THE SHAREHOLDERS OF COMPANY.

MISCELLANEOUS

123. Notwithstanding anything to the contrary contained in the preceding Articles 1 to 122, in the event of any inconsistency or contradiction between the provisions of Chapter I of these Articles and the provisions of Chapter II of these Articles, the provisions of Chapter II of these Articles shall override and prevail over the provisions of Chapter I of these Articles. It is clarified that the matters listed in articles 123 to 189 are in addition to all other rights that the Investors (as defined below) may have as shareholders of the Company under Chapter I of these Articles.
124. The termination of the Agreement (as defined below) or the ceasing of operation of certain Articles under these Articles shall be without prejudice to any claim or rights of action previously accrued to the parties to the Agreement before such termination / cessation.

DEFINITIONS AND INTERPRETATION

125. Definitions

In these Articles, the following terms, to the extent not inconsistent with the context thereof, shall have the following meanings assigned to them herein below:

“Act” means the Companies Act, 1956 or the Companies Act, 2013 (as applicable) and any amendment thereto or any other re-enactment thereof.

“Affiliate(s)” means:

- (i) with respect to any Person other than a natural Person, any other Person that is directly or indirectly, through one or more intermediate Persons, Controlling, Controlled by, or under common Control of such Person and any investment funds managed or advised by such specified Person; and
- (ii) with respect to any natural Person, (i) any other Person that is a Close Relative of such Person, and (ii) any Person that is directly or indirectly, through one or more intermediate Persons, Controlled by such Person;

Provided that with respect to the Investors the term 'Affiliate' shall also include any pooled investment fund(s) and/or juristic entity managed by the same manager, managing member, limited partner/investors of pooled investment fund(s) of IBEF II and/or IBEF IIA, general partner or management company or by an entity Controlling, Controlled by, or under common Control with such manager, managing member, general partner or management company. It is hereby clarified that in relation to the Investors, except in the context of In Specie Distribution, an “Affiliate” shall not include any Competitor and/or any portfolio entity or limited partners of the Investors and/or their Affiliates.

Chapter II was inserted vide Special Resolution passed at the Extra Ordinary General Meeting of the Company held on June 13, 2014 and amended vide Special Resolution passed at the Extra Ordinary General Meeting of the Company held on September 1, 2025.

“Agreement” means the amended and restated investment agreement dated entered into between the Company, IBEF II, IBEF IIA, Jawahar, and the Key Shareholder Group dated July 11, 2024.

“Articles” means the articles of association of the Company, as amended from time to time.

“Assets” means asset or properties (whether immovable, movable, tangible, intangible, absolute, accrued or fixed), including cash, cash equivalents, receivables, real estate, plant and machinery, equipment, Intellectual Property rights, raw materials, inventory,



furniture, and fixtures.

"Authorisation" means any consent, registration, filing, notarization, certificate, license, approval, permit, authority, no-objections or exemption from, by or with any Governmental Authority, whether given by express action or deemed given by failure to act within any specified time period and all lenders', corporate, creditors' and shareholders' approvals or consents, including any of the aforementioned which may be required with respect to the Business.

"Big Four Accounting Firms" means any of KPMG, Pricewaterhouse Coopers, Deloitte & Touche Tohmatsu or Ernst & Young and/ or their affiliated or associate firms permitted to practice in India.

"Board" means the board of Directors of the Company.

"Business" means providing complete solutions, whether by way of, individually and/or collectively, design, engineering, manufacture, trading, supply, erection and commissioning in architectural facade and glass wall curtain systems including but not limited to building envelopes, aluminium doors and windows, all types of railings, glass partitions whether indoors or outdoors, fabrication of aluminium profiles, powder coating, painting, all types of glass glazing, aluminium composite panel, stone cladding or cladding by way of using any material, designing, fabrication, installation of any type of glass or metal structures like bridges, pathways, canopies, skylights.

"Business Day" means a day on which scheduled commercial banks are open for normal banking business in Mumbai, India and Port Louis, Mauritius.

"Business Plan" means the annual detailed business and financing plan of the Company prepared by the Company and the Key Shareholder and approved by the Investors in accordance with these Articles, which includes the annual budget, comprising a projected profit and loss account, a projected balance sheet and projected cash flow statements, projected revenues, projected costs, projected operating and projected capital expenditures, and projected financing requirements, amount and timing of debt financing, if any, the current and future business strategy, project details including but not limited to project cost and project financial statements, for the on-going Financial Year, and as may be amended from time to time in accordance with the terms of these Articles.

"CFO" means the chief financial officer of the Company or any Person of whatsoever designation performing the functions of a chief financial officer, who is primarily responsible for the upkeep and management of accounts, management information system and cash flows of the Company and who is appointed in accordance with these Articles;

"Close Relatives" means parents, spouse, son, daughter and their respective spouses;

"Company" shall mean Glass Wall Systems (India) Limited, a public limited company incorporated in India under the provisions of the Companies Act, 1956, and having its registered office at 503/504, 5th Floor, A Wing, Marathon Futurex, Mafatlal Mills Compound, N. M. Joshi Marg, Lower Parel (East), Mumbai – 400013.

"Competitor" means any Person engaged in the Business, any supplier of the Company and any real estate developer.

"Contingent Liability(ies)" means (a) a possible obligation from past events that will be confirmed only by the occurrence or non-occurrence of one or more uncertain future events not wholly within the control of the Person; or (b) a present obligation from past events but which is not recognized because (i) it is not probable that an outflow of resources will be required to settle the obligation; or (ii) the obligation cannot be measured reliably.

"Control", with respect to a Person, includes the right to appoint majority of the directors or to control the management or policy decisions of such Person exercisable by a Person or Persons acting individually or in concert, directly or indirectly, including by virtue of their shareholding or management rights or shareholders agreements or voting agreements or in any other manner and includes, without prejudice to the generality of the foregoing, the ownership, directly or indirectly, of more than 26% of the voting rights of such Person.

"Deed of Adherence" means the deed of adherence in the form set out in Schedule 4 the Agreement.



"Default Notice" shall have the meaning ascribed to the term under Article 173(b) of these Articles.

"Director" means a director of the Company and any alternate of such director appointed in accordance with the Act, the Agreement and these Articles.

"Encumbrance" means any encumbrance including, without limitation, any security interest, claim, mortgage, pledge, charge, hypothecation, deed of trust, lien, deposit by way of security, bill of sale, assignment, option or right of pre-emption, attachment of Assets, beneficial ownership (including usufruct and similar entitlements), any provisional or executorial attachment, or any other type of preferential arrangement, privilege or priority of any kind having the effect of security or other such obligations, any designation of loss payees or beneficiaries or any similar arrangement under any insurance policy, any conditional sale or other title retention agreement or any lease in the nature thereof and any other interest held by a third party or a contract to give or refrain from giving any of the foregoing, any encumbrance, including any restriction imposed under any contract (other than the Agreement) on the transferability of the Securities.

"Equity Shares" mean the fully paid-up equity shares of the Company.

"Erstwhile IA" shall mean investment agreement dated 9 June 2014, as amended on 10 March 2017, entered into by and between the Company, the Key Shareholder Group Shareholders, the Investors, Mr. Kamlesh Choudhari and Mrs. Sunita Choudhari.

"ESOP Plan" shall have the meaning ascribed to the term under Article 158(a) of these Articles.

"Event of Default" shall have the meaning ascribed to the term under Article 172 of these Articles.

"Execution Date" shall mean July 11, 2024;

"Financial Year" means the period commencing on 1st of April of a year and ending on the 31st day of March of the following year.

"FMV" means fair market value which shall be determined by one of the Big Four Accounting Firm, mutually agreed upon between the Investors and Key Shareholder. The FMV shall be calculated on a going concern basis and shall take into account the discounted cash flow valuation, valuation multiple in comparable transactions, strategic transactions and trading multiples of listed peers and shall be calculated in accordance with the principles of Indian GAAP. Where the FMV is being determined pursuant to any notice by the Investor provided under the terms of these Articles, or is consequent to any breach by the Key Shareholder and/ or Company, whether such FMV shall be determined as on the date of the notice or date of the said breach shall be decided at the option of the Investors.

"Force Majeure" or "Force Majeure Event" means the occurrence of an act of God, epidemic, lightning, earthquake, landslide, cyclone, flood, volcanic eruption, chemical or radioactive contamination or ionising radiation, fire or explosion, an act of war (whether declared or undeclared), invasion, armed conflict or act of foreign enemy, blockade, embargo, riot, insurrection, terrorist or military action, civil commotion or politically motivated sabotage, industry-wide or state-wide strikes or industrial action or any other event which is beyond reasonable control of any Party;

"Fully Diluted Basis" means the basis for computation of share capital or share ownership whereby all outstanding securities that are convertible, exercisable, exchangeable and reclassified into Equity Shares, are assumed to have been so converted, exercised, exchanged or reclassified.

"GAAP" means generally accepted accounting principles in India, notified by the appropriate Governmental Authority under the Act.

"Governmental Authority" means any government (foreign domestic, territorial, state, municipal or local), or any governmental, non-governmental, legislative, executive, administrative, fiscal, judicial, quasi-judicial or regulatory authority, government-owned or government-controlled (in whole or in part) enterprise, body, board,



bureau, ministry, department, commission, court, tribunal, agency, instrumentality or other Person exercising legislative, executive, administrative, fiscal, judicial or regulatory functions (including planning authorities, mediators or arbitrators of competent jurisdiction), having jurisdiction over the matter in question, and includes any such authority having jurisdiction over or responsibility with respect to, the administration, assessment, determination, collection or imposition of any Tax, the Securities and Exchange Board of India and the Reserve Bank of India.

"IBEF II" shall mean India Business Excellence Fund II, a unit scheme of Business Excellence Trust II, a trust created under the Indian Trust Act, 1882, acting through its investment manager, MO Alternate Investment Advisors Private Limited, a company registered in India under the Companies Act, 1956 having its registered office at Motilal Oswal Tower, Junction of Gokhale Road & Sayani Road, Prabhadevi, Mumbai – 400025.

"IBEF IIA" shall mean India Business Excellence Fund - IIA, a public limited company incorporated under the laws of Mauritius and having its office at Apex House, Bank Street, Twenty-Eight, Cybercity, Ebene, Mauritius 72201.

"Indebtedness" of any Person, means all obligations of such Person: (a) for borrowed money, (b) evidenced by notes, bonds, debentures or such similar instruments, (c) for the deferred purchase price of goods or services (other than trade payables or accruals incurred in the Ordinary Course of Business), (d) under capital leases; and (e) in the nature of guarantees of the obligations described in items (a) through (d) above of any other Person.

"Insolvency Event" means any of the following events, in respect of any Party:

- (a) any corporate action, legal proceedings or other procedure or step is taken or notice is given and received in relation to:
 - (i) winding-up, dissolution or administration (by way of voluntary arrangement, scheme of arrangement or otherwise) of the relevant Party; or
 - (ii) a composition, assignment or arrangement with any creditors of the relevant Party due to any debt restructuring exercise; or
 - (iii) admission of a corporate insolvency resolution process by National Company Law Tribunal or the appointment of a resolution professional, interim resolution professional, provisional liquidator, liquidator, receiver, or other similar officer in respect of the relevant Party or in respect of its substantial assets, which admission or appointment is not set aside by an order of a court/tribunal within a period of 120 (one hundred and twenty) days of such admission or appointment; or
 - (iv) enforcement of any security over any assets of the relevant Party, which has not been stayed or withdrawn within a period of 120 (one hundred and twenty) days of such appointment.

"Intellectual Property" means all of the following anywhere in the world and all legal rights, title or interest in, under or in respect of the following arising under Law, whether or not filed, perfected, registered or recorded and whether now or later existing, filed, issued or acquired, including all renewals: (a) all national, regional and international patents, patent applications, patent disclosures, and all related re-issues, re-examinations, divisions, revisions, restorations, renewals, extensions, provisionals, continuations and continuations in part; (b) all copyrights, copyright registrations and copyright applications, copyrightable works and all other corresponding rights; (c) all mask works, mask work registrations and mask work applications; (d) all trademarks; (e) all inventions (whether patentable, patented or un-patentable and whether or not reduced to practice, any said patents, including any extensions, reissues, re-examinations, renewals, divisions, continuations, continuations-in-part, or design patents); (f) know how, including technical know-how, process know-how, technology, technical data, trade secrets, confidential business information, manufacturing and production processes and techniques, clinical data and protocols, research and development information (including all research and development data, experimental and project plans), advertising and promotional materials, customer, distributor, third party manufacturer and supplier lists and information, correspondence, records, and other documentation, and other proprietary documentation and information of every kind; (g) all databases, data collections and data exclusivity; and (h) all other proprietary rights; including the right to sue for past, present or future infringement, misappropriation or dilution of any of the foregoing.

"Investors" shall mean IBEF II and IBEF IIA collectively, and "Investor" shall be any of them.

"Investor Director(s)" shall have the meaning ascribed to the term under Article 127(a) of these Articles.



"IRR" means the discount rate expressed as an annual percentage rate, which when applied to any cash flows, results in a net present value of zero on those cash flows taking into account the date and amounts of such cash flows. While calculating the IRR, the coupon received by the Investors and any dividend declared by the Company would also be taken into consideration to adjust the calculation of IRR.

"Investor Per Share Price" means the total amount paid by the Investor for purchase of/subscription to the Investor Securities divided by the number of Equity Shares held by the Investor (on a Fully Diluted Basis) at the time of computation.

"Investor Securities" means collectively (i) 17,00,845 (Seventeen Lakhs Eight Hundred Forty-Five) Equity Shares of face value of Rs.10 (Rupees Ten only) held by IBEF II; and (ii) 43,73,604 (Forty-Three Lakhs Seventy-Three Thousand Six Hundred Four) Equity Shares of face value of Rs.10 (Rupees Ten only) each held by IBEF IIA and shall also include any Equity Shares acquired by the Investors in accordance with Article 150(b) and Article 184.

"In-Specie Distribution" means any transfer of any Securities from the Investors to their respective limited partners pursuant to any in specie distribution of assets of the Investors;

"IPO" means closing of an underwritten initial public offering of the Equity Shares by the Company (whether by a fresh issue, or a sale of the existing Equity Shares or a combination of both), pursuant to which the Equity Shares are listed on a Stock Exchange, in which at least the minimum number of shares mandatory under the listing requirements are sold / issued to the public, in compliance with all applicable Laws and pursuant to Article 165 of these Articles.

"Jawahar" shall mean Mr. Jawahar Hemrajani, an Indian citizen, aged 60 years, holding PAN AAAPH4147F and currently residing at B – 2701 / 2702, Tharwani Heights, Sector 18, Sanpada, Navi Mumbai – 400705.

"Key Employees" means the chief executive officer, the CFO and chief operating officer of the Company (by whatever name called) appointed from time to time and any other officer of the Company as may be designated as a 'Key Employees' by the Board from time to time.

"Key Shareholder" shall mean Jawahar.

"Key Shareholder Director(s)" shall have the meaning as ascribed under the shareholders agreement (as amended from time to time) entered into by Key Shareholder, Key Shareholder Group and Investors

"Key Shareholder Group Shareholder(s)" shall mean the Key Shareholder and the Key Shareholder Group.

"Key Shareholder Group" shall mean Mrs. Vinne Hemrajani, Mr. Eshan Hemrajani, Mr. Eshan Hemrajani jointly with Mrs. Dikshita Eshan Hemrajani, and Mr. Amit Hemrajani.

"Law" means and includes any statute, law, bye-law, enactment, regulation, ordinance, policy, treaty, rule, notification, direction, directive, guideline, requirement, license, rule of common law, order, decree, judgment, or any restriction or condition including any similar form of decision of, or determination, application or execution by, or interpretation or pronouncement having the force of law of, any Governmental Authority having jurisdiction over the matter in question.

"Liabilities" means all Indebtedness, obligations, Contingent Liabilities and other liabilities of a Person including any obligation to pay Tax (whether absolute, accrued, fixed, or otherwise, or whether due or to become due).

"Loss" means actual and direct (i) losses, Liabilities, damages, diminution in value, fines, interest, penalties and (ii) Taxes or any other costs and penalty (whether the foregoing arise out of third-party claims or not and whether or not pursuant to any pronouncements, orders and/or decrees by any Governmental Authority) including, reasonable attorneys' fees and expenses and all amounts paid in investigation, defence or settlement of any of the foregoing but excluding all punitive or indirect damages.

"Lock In Period" shall have the meaning ascribed to the term under Article 150(a) of these Articles.

"Material Adverse Change" means any event, occurrence, fact, condition, change, development or effect that, individually or in the aggregate, has caused or is likely to



cause a material adverse change in:

- (i) the Assets, Business, properties, Liabilities, financial condition, results, operations or prospects of the Company (i.e. having a financial impact of Rs. 5,00,00,000 (Rupees Five crores or more);

For the avoidance of doubt it is clarified that where the any event, occurrence, fact, condition, change, development or effect that, individually or in the aggregate, has caused or is likely to cause a material adverse change which cannot be quantified in terms of money then the said limit of Rs. 5,00,00,000 (Rupees Five Crores or more) will not apply.

- (ii) the ability of the Company and/or the Key Shareholder to: (i) perform their respective obligations; or (ii) consummate the transactions contemplated, under the Transaction Documents; and
- (iii) validity and enforceability of the Transaction Documents or the rights or remedies of the Investors therein or the transactions contemplated therein.

"Memorandum" means the memorandum of association of the Company as amended from time to time.

"Ordinary Course of Business" means the ordinary course of business of the Company consistent with past custom and practice, to the extent consistent with applicable Law; provided that a series of related transactions which taken together is not in the Ordinary Course of Business shall in each case individually also be deemed not to be in the Ordinary Course of Business.

"Parties" shall mean the Investor, the Company, the Key Shareholder and the Key Shareholder Group collectively, and "Party" shall mean any of them.

"Permitted Transfer" shall have the meaning ascribed to the term under Article 150(b) of these Articles.

"Person(s)" means any person (including a natural person), trust, Hindu undivided family (HUF), firm, trade union, company, corporation, Governmental Authority, state or agency of a state or any association or partnership (whether or not having separate legal personality) of two or more of the foregoing.

"Potential Investor" shall have the meaning ascribed to the term under Article 157 of these Articles.

"Registrar of Companies" means the registrar of companies having jurisdiction in the area where the registered office of the Company is situated.

"Related Party" (i) with respect to any individual, means:

- (a) the Relatives of such individual,
- (b) entities Controlled by such individual and/or his Relatives, either individually or jointly, and
- (c) directors and Affiliates of the entities referred to in (b), and (ii) with respect to any company, shall have the meaning ascribed to the term in the Act.

"Related Party Policy" means the policy as approved by the Investors and adopted by the Board.

"Relative" shall have the meaning assigned to the term in the Act.

"Reserved Matter Items" shall have the meaning ascribed to the term under Article 133 of these Articles.

"Restated Articles" means these Articles incorporating the provisions of the Agreement.

"Securities" means the Shares and shall include the Investor Securities.

"Share Capital" means all of the issued and paid-up shares.

"Share Equivalents" means preference shares, debentures, bonds, loans, warrants, options, depositary receipts, debt securities, loan stock, notes, or any other instruments, securities or certificates which are convertible into or exercisable or exchangeable for, or which carry a right to subscribe to or purchase, or which represent or bestow any beneficial ownership / interest in, the Equity Shares.



"Shareholder" means any Person who holds any Shares.

"Shares" means Equity Shares.

"Specific Properties" means the owned properties of the Company listed in Schedule 10 of the Agreement.

"Stock Exchange" means the Bombay Stock Exchange Limited, the National Stock Exchange of India Limited (including, in each case, any successor thereto) and/or any other recognised stock exchange (domestic or international) as may be mutually acceptable to the Investors and the Key Shareholder and the Company.

"Tag-Along Right" shall have the meaning ascribed to the term under Article 151 of these Articles.

"Taxes" means (i) any direct or indirect taxes including excise duties, stamp duties, customs duties, service tax, value added tax, sales tax, local taxes, cess, and (ii) all forms of deductions, withholdings, duties, imposts, levies, fees or other charges or taxes of a similar nature charged/levied by any Governmental Authority (including any penalty or costs or charges or interest payable in connection with any failure to pay the same), whether levied, collected, withheld or assessed.

"Third Party" shall mean a Person who is not a party to the Agreement.

"Transaction Documents" means a collective reference to the Agreement, these Articles and all other deeds and documents executed by the Parties to give effect to the transactions contemplated under the Agreement, and include the provisions of the Erstwhile IA which continue to be effective as per the terms of the Agreement.

"Transfer" means to sell, gift, exchange, give, assign, transfer any interest in trust, alienate, Encumber, amalgamate, merge or suffer to exist (whether by operation of Law or otherwise) any Encumbrance on, or otherwise dispose of in any manner whatsoever, voluntarily or involuntarily, but shall not include transfers by way of testamentary or intestate successions, and the term "Transferred" shall have a meaning correlative to the foregoing. The term "Transfer", when used as a noun, shall have a correlative meaning.

126. Interpretation

- (i) All references in these Articles to statutory provisions shall be construed as meaning and including references to:
 - (a) any statutory modification, consolidation or re-enactment (after the date of the Agreement) for the time being in force;
 - (b) all delegated legislation made pursuant to a statutory provision; and
 - (c) any statutory provisions of which these statutory provisions are a consolidation, re-enactment or modification.
- (ii) References to "Articles", "Schedules" and "Annexures" shall be to articles or schedules or annexures of these Articles.
- (iii) The Schedules attached hereto are incorporated in and are intended to be a part of these Articles, provided that in the event of a conflict between the terms of any Schedule and the terms of the body of these Articles, the terms of the body of these Articles shall take precedence.
- (iv) All titles, subject headings, table of contents and similar items are provided for the purpose of reference and convenience and are not intended to affect the meaning of the content or scope of these Articles.
- (v) The terms "hereof", "hereto" and derivative or similar words refer to these entire Articles or specified Articles of these Articles, as the context may require.
- (vi) References to the singular number shall include references to the plural number and vice versa.
- (vii) Words denoting one gender shall include all genders.



- (viii) Any reference to any agreement or document shall include references to any such agreement or document as it may, after the Execution Date, from time to time, be amended, varied, supplemented or novated in writing in accordance with the requirements of such agreement or document.
- (ix) Any reference to any Clause or Schedule of the Agreement shall be construed as though the provisions of such Clause or Schedule are included herein in these Articles.
- (x) A reference to conduct includes, without limitation, an omission, statement or undertaking whether or not in writing.
- (xi) Reference to the word "include" shall be construed without limitation.
- (xii) If any word or phrase is defined, its other grammatical forms or conjugations shall have a corresponding meaning.
- (xiii) A reference to writing includes any means of reproducing words in a tangible and permanently visible form.
- (xiv) Reference to a "month" or a "year" shall be to a calendar month or calendar year, respectively.
- (xv) Reference to 'consent' or "approval" shall mean prior written consent/approval.
- (xvi) Any reference to mutual agreement shall mean any mutual agreement in writing by the concerned Parties.
- (xvii) The expressions "body corporate", "holding company", "subsidiary" and "subsidiary company" shall have the respective meanings ascribed to them in the Act.
- (xviii) No provisions of these Articles shall be interpreted in favour of, or against, any Party by reason of the extent to which such Party or its counsel participated in the drafting hereof or by reason of the extent to which any such provision is inconsistent with any prior draft hereof.

CORPORATE GOVERNANCE

127. Constitution of the Board

- (a) The Board of Directors of the Company and the committees of the Board shall consist of such number of Directors and shall have such composition, as may be required or permitted under the applicable Laws including but not limited to the Companies Act, 2013 and the Securities and Exchange Board of India (Listing Obligations and Disclosure Requirements) Regulations, 2015. Notwithstanding anything set out above, on and after the receipt of final listing and trading approvals by the Company from the Stock Exchanges ("Listing Date"), pursuant to the IPO and subject to applicable Laws and receipt of approval of the shareholders of the Company by way of a special resolution at the first shareholders' meeting immediately after the consummation of the IPO, as long as the Investors continue to hold Equity Shares in the Company above the Threshold Stake (i.e., 5% (five percent) of the share capital of the Company, on a fully diluted basis), the Investors shall be entitled to the right to nominate 1 (one) director on the Board ("Investor Director"). The Company shall include necessary resolutions in the agenda for the first general meeting, to be held post listing of Equity Shares of the Company pursuant to the IPO, to provide such right and amend the Articles of Association of the Company to incorporate the aforesaid right, it being clarified that any such right shall be subject to receipt of approval by way of a special resolutions of the shareholders of the Company, as required under applicable Laws.
- (b) In case the size of the Board is increased to more than 5 (five) Directors, the Investors and the Key Shareholder shall have the right to appoint and maintain such number of non-independent Directors that is proportionate to their respective aggregate shareholding in the Company on a Fully Diluted Basis, upon mutual agreement of the Investors and the Key Shareholder.
- (c) **Independent Directors.** In addition to their rights under Article 127(b), the Investors and the Key Shareholder shall have the right to recommend up to



2 (two) independent directors (mutually acceptable to the Investors and the Key Shareholder) to be appointed on the Board.

- (d) **Appointment and removal.** The right of nomination of a Director conferred on the Investors and the Key Shareholder with respect to Investor Directors and Key Shareholder Director respectively, shall include the right at any time to require the Company, subject to the provisions of the Act, to remove and/or replace from office such individual nominated or appointed by the Investors / Key Shareholder (as the case may be), and from time to time determine the period for which such individual shall hold office as Director. Independent Directors shall be removed or replaced by the Company pursuant to mutual consent of the Investors and the Key Shareholder.
- (e) **Additional directorship.** To the extent permissible by applicable Law, the appointment of the Investor Directors shall be by direct nomination by the Investors and any appointment or removal of the Investor Director under this Article 127 shall, unless the contrary intention appears, take effect from the date it is notified to the Company in writing. If applicable Law does not permit the Person nominated by the Investors, to be appointed as a Director merely by nomination by the Investors, then the Company and the Key Shareholder Group Shareholders shall ensure that the Board forthwith (and in any event within 10 (Ten) Business Days of such nomination or at the next Board meeting, whichever is earlier) appoints such Person as a Director and further that, unless the concerned Investor changes or withdraws such nomination, such Person is also elected as a Director at the next general meeting of the Shareholders.
- (f) **Exercise of voting rights.** If the Investors desire by way of written communication to the Company that the Investor Director nominated by it should cease to be a Director, the Shareholders shall exercise their voting rights, in relation to the Securities held by them in the Company in such manner so as to ensure removal of such Director and the appointment of such other individual as a Director, as may be nominated by the Investors.
- (g) **Alternate Director.** Subject to the Applicable Laws, the Investors shall be entitled to nominate alternate Director(s) for the Investor Director(s) it is entitled to nominate. Such appointment as alternate Director shall take place as the first item of business at the Board meeting next following receipt by the Company of such nomination.
- (h) **Observer.** The Investors shall, in addition to its right to nominate Directors in accordance with Article 127, also be entitled to appoint 1 (one) observer ("Observer") to the Board and all committees of the Board. The Observer shall be entitled to attend all the meetings of the Board and the committees of the Board of the Company but shall not have any right to vote or participate in any manner in any discussions or deliberations of the Board or its committees. The Investors shall be responsible for the actions of the Observer including compliance by the Observer of confidentiality obligations under the Transactions Documents as applicable to the Investors.
- (i) **Casual Vacancy.** The Key Shareholder and the Investors shall have the right to fill in any casual vacancy caused in the office of the Key Shareholder Director nominated by the Key Shareholder or Investor Director(s) nominated by the Investors, as the case may be, by reason of his/her resignation, death, removal or otherwise. All nominations made by the Key Shareholder or Investor, as the case may be, shall be in writing and shall take effect on the Board passing resolution(s) approving the appointment of the nominated Director.
- (j) **Reasonable Expenses.** The Company shall reimburse the Investor Directors' reasonable expenses relating to their attendance at meetings of the Board or committees, including air fare, boarding and lodging expenses. The Investors shall reimburse the Observers reasonable expenses relating to his attendance of meetings limited to costs of local travel in Mumbai. Further it is agreed between the Parties that the meeting of the Board shall take place only in Mumbai

128. Liability of the Investor Directors

- (a) The Company recognizes that the Investor Directors shall not have any day-to-day managerial powers and that they will not be whole time, managing or



executive directors of the Company and will not, subject to applicable Law, be held responsible for any default or failure of the Company in complying with the provisions of any applicable Laws, including defaults under the Act, Taxation and labour Laws of India. The Company shall assert such position in any notice, reply, litigation or other proceedings in which any liability is sought to be attached to the Investors and/or the Investor Directors. The Investor Directors shall not be required to hold any qualification shares.

- (b) Subject to applicable Law, the Key Shareholder and the Company expressly agree and undertake that they shall not identify the Investor Directors as 'officers in default' of the Company, or occupier of any premises used by the Company or employers or "person-in-charge" under applicable Laws. Further, the Key Shareholder and the Company undertake to ensure that the Directors or suitable individuals other than Investor Directors are nominated as compliance officers, occupiers and/or employers and/or persons-in-charge, as the case may be, in order to ensure that, to the maximum extent permitted by applicable Law, the Investor Directors do not incur any liability for any default or failure of the Company in complying with the provisions of any applicable Laws.
- (c) In the event that any notice or proceedings have been filed against any Investor Director, the Company, and the Key Shareholder shall take all necessary steps to ensure that name of such Investor Director is excluded / deleted and the charges / proceedings against such Investor Director are withdrawn and shall also take all steps to defend such Investor Director against such proceedings and the Company shall pay all costs, damages, fines, levies etc. that may be levied against such Investor Director.
- (d) **Director Indemnification**
 - (i) The Company shall indemnify, defend and hold harmless the Investor Directors to the fullest extent permitted by applicable Law against all Losses actually and reasonably incurred by him or her in connection with any action, suit or proceeding, where the Director was or is a party or is threatened to be made a party to any threatened, pending or completed action, suit or proceeding, whether civil, criminal, administrative or investigative, by reason of the fact that such Investor Director is or was a Director of the Company, was serving at the request of the Company as an officer/ director/ partner/ trustee/ employee of another Person (as the case may be).
 - (ii) If so, requested by the Investor Directors, the Company shall make payment towards any and all Losses incurred by the Investor Directors by paying such Losses on behalf of the Investor Directors. In the event the Company is restricted under law from paying such Losses on behalf of the Investor Directors, then the Company shall reimburse the Investor Directors for such Losses. It is agreed between the Parties that, in the event the Investor Directors make any payments under this Article 128(d)(ii), then the Investor Directors will intimate the Company about such payments.
 - (iii) For purposes of these Articles, the termination of any claim, action, suit or proceeding, by judgment, order, settlement (whether with or without court approval) or conviction, or upon a plea of nolo contendere, or its equivalent, shall not create a presumption that any Investor Director did not meet any particular standard of conduct or have any particular belief or that a court has determined that indemnification is not permitted by applicable Law. It is further agreed between the Parties that, if the Investor Director is convicted by any court/Governmental Authority for fraud in relation to the subject matter under indemnification, then the said Investor Director shall not be liable to be indemnified by the Company.
 - (iv) The rights of the Investor Directors hereunder shall be in addition to any other rights the Investor Directors may have under the Restated Articles or otherwise. To the extent that a change in applicable Law permits greater indemnification by agreement than would be afforded currently under the Restated Articles, it is the intent of the Parties hereto that the Investor Directors shall enjoy by these Articles the greater benefits so afforded by such change.



- (v) The Investor Directors are expressly meant to be beneficiaries of this Article 128.
- (e) The Company shall maintain, at its own cost, directors and officers liability insurance for all Directors for a sum insured amounting to of Rs. 10,00,00,000 (Rupees Ten crores only) on such terms as are satisfactory to the Investor.

129. Liability of the Key Shareholder Director

- (a) In the event that any notice or proceedings have been filed against any Key Shareholder Director, the Company shall take all necessary steps to ensure that name of such Key Shareholder Director is excluded / deleted and the charges / proceedings against such Key Shareholder Director are withdrawn and shall also take all steps to defend such Key Shareholder Director against such proceedings and the Company shall pay all costs, damages, fines, levies etc. that may be levied against such Key Shareholder Director.
- (b) **Director Indemnification**
 - (i) The Company shall indemnify, defend and hold harmless the Key Shareholder Director to the fullest extent permitted by applicable Law against all Losses actually and reasonably incurred by him or her in connection with any action, suit or proceeding, where the Director was or is a party or is threatened to be made a party to any threatened, pending or completed action, suit or proceeding, whether civil, criminal, administrative or investigative, by reason of the fact that such Key Shareholder Director is or was a Director of the Company, was serving at the request of the Company as an officer/ director/ partner/ trustee/ employee of another Person (as the case may be).
 - (ii) If so, requested by the Key Shareholder Director, the Company shall make payment towards any and all Losses incurred by the Key Shareholder Director by paying such Losses on behalf of the Key Shareholder Director. In the event the Company is restricted under law from paying such Losses on behalf of the Key Shareholder Director, then the Company shall reimburse the Key Shareholder Director for such Losses. It is agreed between the Parties that, in the event the Key Shareholder Director make any payments under this Article 129(b)(ii), then the Investor Directors will intimate the Company about such payments.
 - (iii) For purposes of these Articles, the termination of any claim, action, suit or proceeding, by judgment, order, settlement (whether with or without court approval) or conviction, or upon a plea of nolo contendere, or its equivalent, shall not create a presumption that any Key Shareholder Director did not meet any particular standard of conduct or have any particular belief or that a court has determined that indemnification is not permitted by applicable Law. It is further agreed between the Parties that, if the Key Shareholder Director is convicted by any court / Governmental Authority for fraud in relation to the subject matter under indemnification, then the said Key Shareholder Director shall not be liable to be indemnified by the Company.
 - (iv) The rights of the Key Shareholder Director hereunder shall be in addition to any other rights the Key Shareholder Director may have under the Restated Articles or otherwise. To the extent that a change in applicable Law permits greater indemnification by agreement than would be afforded currently under the Restated Articles, it is the intent of the Parties hereto that the Key Shareholder Director shall enjoy by these Articles the greater benefits so afforded by such change.
 - (v) The Key Shareholder Director are expressly meant to be beneficiaries of this Article 129.

130. Notwithstanding Articles 128 and 129 of this Articles, and Clause 16.2(e) of the Erstwhile IA, and to the extent not permitted under applicable Laws (including any SEBI or Stock Exchanges observations) the Investor Directors and Key Shareholder Directors will not



be indemnified by the Company for and in relation to any loss, claim or liability (and any actions, proceedings or settlements in respect thereof) arising out of or based on: (a) any untrue statement of a material fact contained in any prospectus, offering circular, or other offering document relating to the IPO (excluding any information provided by the Investors, its officers, directors employees, consultants or legal advisers); (b) any failure to state a material fact necessary to make the statements therein not misleading; and (c) any violation of applicable Laws (including but not limited to all rules and regulations issued by SEBI and the Stock Exchanges, including the SEBI (Issue of Capital and Disclosure Requirements), Regulations, 2018)."

131. Board Meetings

- (a) Subject to Applicable Law, the business and affairs of the Company shall be managed by and under the direction of the Board. Provided however that, in respect of Reserved Matter Items, the Board shall act in the manner specified in Article 133.
- (b) **Frequency.** The Board shall meet at least such number of times and at such frequency as prescribed under the Act.
- (c) **Notice:**
 - (i) A meeting of the Board may be called by any 1 (one) other Director by giving notice in writing to the company secretary of the Company, specifying the date, time and agenda for such meeting. The company secretary of the Company shall, upon receipt of such notice, issue a notice to all Directors, convening a meeting of the Board, which notice shall be accompanied by a written agenda specifying the business of such meeting and copies of all papers relevant for such meeting. Reserved Matter Items shall form a part of the agenda of a Board meeting only after prior written consent of the Investors is obtained. The Key Shareholder Group Shareholders and the Company shall ensure that any matter proposed by the Investor/Investor Director shall be placed on the agenda of any Board meeting of the Company.
 - (ii) No meeting of the Board may be held unless at least 7 (seven) days' written prior notice of the meeting is issued to all the Directors; provided that a Board meeting at shorter notice may be convened, subject to the provisions of the Act, if the majority of the Directors including the Investor Directors accord their consent thereto.
- (d) **Quorum:**
 - (i) The quorum at a Board meeting shall be 2 (two) Directors or one-third of its total strength, whichever is higher, of which 1 (one) shall be an Investor Director and 1 (one) shall be the Key Shareholder Director, who shall be present at the commencement and throughout the Board meeting, unless this requirement is waived in writing by such Investor Director.
 - (ii) If adequate quorum is not present at any Board meeting due to the Investor Director or the Key Shareholder Director not being present as mentioned in sub-article (i) above, the meeting shall be adjourned by 7 (seven) days at the same place and same time as the original meeting. If adequate quorum is not present at such adjourned Board meeting, then notwithstanding anything to the contrary contained herein, the Directors then present shall constitute the quorum for the purposes of such adjourned meeting, except for the purposes of discussing or taking any action or decision relating to any Reserved Matter Item in accordance with Article 133 (Reserved Matters) below. However, on the Reserved Matters, once the Investors have given consent to any such matter on the agenda prior to the Board Meeting, the affirmative vote of the Investors Directors or nominee shall not be required for such Reserved Matter at the relevant Board Meeting; provided that in the event the Investors have rejected or refused to give their affirmative vote relating to any Reserved Matter Item prior to the Board Meeting, such Reserved Matter Item shall not be placed on the agenda for the relevant Board Meeting. If such day on which the adjourned meeting is to be held is not a Business Day, then the meeting shall be held on the next day which



is a Business Day. Provided however that if any Key Shareholder Director is not present in the adjourned meeting, the said meeting shall be adjourned once again by 7 (seven) days at the same place and same time as the adjourned meeting. If the Key Shareholder Director is not present in the second adjourned meeting, such resolution shall be moved through circular resolution mechanism as provided in Article 131(h) below to the extent permissible by Law. However, if it is not possible to pass such resolution by circular resolution instead of a circular resolution, the said meeting shall be adjourned once again by 7 (seven) days at the same place and same time as the adjourned meeting and the resolutions may be passed at such further adjourned meeting and the non-presence of the Key Shareholder Director shall not impact the quorum at such third adjourned meeting.

- (e) **Voting.** Each Director shall be entitled to exercise 1 (one) vote at Board meetings. Subject to Article 133 (Reserved Matters) and any additional requirements under the Act, the Memorandum and Articles, any decision shall be said to have been made and/or a resolution shall be said to have been passed at a meeting of the Board, only if at a validly constituted meeting such decisions are approved by and/or the resolution is passed by a majority of the Directors present and voting at such Board meeting. For the avoidance of doubt and notwithstanding anything to the contrary contained in this Article, no action or decision relating to any Reserved Matter Item shall be taken at any meeting or adjourned meeting or through circulation without the Investor's consent as set out in Article 133 (Reserved Matters).
- (f) **Chairman and Casting Vote.** The chairman of the meeting shall always be a Key Shareholder Director then present at such meeting. The chairman of the meeting shall have a casting vote only in relation to matters, actions or decisions which do not fall within the ambit of any of the Reserved Matter Items.
- (g) **Participation by Audio Visual Methods.** Subject to compliance with the provisions of the Act and the rules framed thereunder, the Directors may participate in Board meetings by telephone or video conferencing or any other means of contemporaneous audio-visual communication which are capable of recording and recognising the participation of Directors and of recording and storing the proceedings of such meeting along with date and time.
- (h) Resolution by circulation.
 - (i) A written resolution circulated to all the Directors or members of committees of the Board, whether in India or overseas, and signed by a majority of them (as are entitled to vote on the resolution) as approved shall (subject to compliance with the relevant requirements of the Act) be as valid and effective as a resolution duly passed at a meeting of the Board called and held in accordance with the Agreement and these Articles;

Provided that the resolution shall be circulated in draft form, together with the relevant papers, if any, to all the Directors or members of the committee, as the case may be, at least 7 (seven) days in advance at the address of such Director or member registered with the Company;

Provided further that if the resolution proposed to be passed by circulation pertains to a Reserved Matter Item, then such circular resolution shall be valid and effective only if it has received the prior written consent of the Investor in accordance with Article 133 (Reserved Matters). However, on the Reserved Matters, once the Investors have given consent to such matter on agenda of the circular resolution, the Investors' Director or nominee shall be deemed to have given consent on such matter and the affirmative vote of the Investors' Director or nominee shall not be required for such Reserved Matter;

Provided that in the event the Investors have rejected or refused to give their affirmative vote relating to any Reserved Matter Item on the circular resolution, such Reserved Matter Item shall not be placed as an agenda before the Board of Director.



- (ii) A resolution passed by circulation in accordance with sub-article (i) above shall be noted at a subsequent meeting of the Board or committee thereof, as the case may be, and shall be made part of the minutes of such meeting.
- (i) **Minutes.** The substance of the course of the proceedings of a Board meeting and the results thereof shall be recorded in minutes in the English language and shall bear the name and/or signature of the chairman, in accordance with the provisions of applicable Law.

132. General Meetings

- (a) **Frequency.** An annual general meeting of the Company shall be held each calendar year within 6 (six) months following the end of the previous Financial Year of the Company. All other general meetings, other than the annual general meeting, shall be extraordinary general meetings. All Shareholders' meetings shall be convened by the Company or by any Shareholder and held in accordance with applicable Law and the Articles.
- (b) **Notice.** A minimum 21 (twenty-one) days' prior written notice shall be provided to all Shareholders of any proposed general meeting, accompanied by the agenda for such general meeting, unless approval for such general meeting to be called at shorter notice is given in accordance with the Act; provided that in case of an annual general meeting, the Board shall also provide the Company's previous Financial Year's audited financial statements to all Shareholders at least 21 (twenty-one) days before the annual general meeting is held to approve and adopt the audited financial statements.
- (c) **Voting.** At all general meetings of the Shareholders, resolutions put to the vote of the meeting (except relating to Reserved Matters Items) shall be decided on a show of hands, unless, before or upon the declaration of the results of the show of hands a poll is demanded by such Persons who meet the criteria as prescribed under the Act. On a poll, subject to the provisions of Article 140 below, every Shareholder present in person, by proxy or if a company, by representative, shall have one vote for each Share held by such Shareholder. The Key Shareholder agrees that the Key Shareholder shall vote in favour of any specific matter in agenda before the general meeting in the same manner in which the said Key Shareholder has voted in the Board meeting.
- (d) **Minutes.** The substance of the course of the proceedings of a general meeting and the results thereof shall be recorded in minutes in the English language and shall bear the name and/or signature of the chairman. The company secretary shall send a copy of the minutes of each general meeting to each Shareholder within 30 (thirty) days after each such meeting.
- (e) **Quorum.** The quorum for all general meetings shall be a minimum of 2 (two) Shareholders, including at least 1 (one) representative of the Investor and the Key Shareholder, being personally present at the general meeting and throughout the course of such meetings provided however that if a quorum is not present at any such meeting due to absence of the Investor's representative or the Key Shareholder, then such meeting shall be adjourned without any action taken to a day that is 7 (seven) days from the date of the original general meeting at the same time and place. If such day on which the adjourned meeting is to be held is not a Business Day, then the meeting shall be held on the next day which is a Business Day. At such adjourned meeting, any 2 (two) Shareholders as are present at such meeting shall form a quorum, except for the purposes of taking action or decision relating to any Reserved Matter Item.

Provided however that if any Key Shareholder representative is not present in the adjourned meeting, the said meeting shall be adjourned once again by 7 (seven) days at the same place and same time as the adjourned meeting. If the Key Shareholder representative is not present in the third adjourned meeting, such resolution shall be passed through postal ballot.

- (f) **Chairman and Casting Vote.** The chairman shall be appointed by the Key Shareholder. The chairman of the meeting shall have a casting vote only in relation to matters, actions or decisions which do not fall within the ambit of any of the Reserved Matter Items.



133. Reserved Matters

- (a) Notwithstanding anything to the contrary contained in these Articles, the Parties agree that the actions, decisions and resolutions set out in Schedule 1 in relation to the Company ("Reserved Matter Items") shall not be taken (whether by the Board, any Director, any committee or the Shareholders of the Company) without the prior written consent of a representative of the Investors. However, on the Reserved Matters, once the Investors have given consent to any such matter on the agenda prior to the Board or Shareholders Meeting, the affirmative vote of the Investors/Investor Directors shall not be required for such Reserved Matter at the relevant Board/Shareholders Meeting;
- (b) The Parties further agree that no Reserved Matter Item shall be placed on the agenda of a Board meeting, any meeting of a committee and/or Shareholder's meeting without prior written consent of the Investors. Notice seeking consent for the Reserved Matter Item shall be given by the Company to the Investors along with all supporting documents and analysis. It is clarified that if any Reserved Matter Item is pending affirmation/rejection at the Investor's end, the same will not be included in the agenda of any forthcoming Board or Shareholders' meeting and the notice seeking consent for the Reserved Matter Item shall be treated as null and void.

COVENANTS AND UNDERTAKINGS

134. The Company and the Key Shareholder, jointly and severally, covenant and agree with the Investors that, at all times during the term of the Agreement, the Company shall, and the Key Shareholder shall ensure that the Company shall comply with the covenants as set out in Clause 4.1 of the Agreement.

135. Business Plan

The Key Shareholder Group Shareholders shall cause the Company to, and the Company shall, obtain the approval of the Investors with respect to the Business Plan on an annual basis (a draft copy of which shall be provided by the Company to the Investors on or before 20th March every year for the forthcoming Financial Year).

136. Re-definition of the Key Shareholder

- (a) The Company, the Key Shareholder Group Shareholders acknowledge that the Investors are not a 'promoter' or part of the 'promoter group' of the Company in general or as understood under the Act or the SEBI (Issue of Capital and Disclosure Requirements) Regulations, 2018, as amended from time to time. The Parties agree, acknowledge and undertake that the Company shall not under any circumstances declare, publish or disclose the Investors in any document related to a public offering/IPO, accounts or any public disclosures as "promoter" or part of the "promoter group" of the Company. The Company and Key Shareholder undertake to take all necessary steps to ensure that the Investors shall not be considered as a "promoter" or part of the "promoter group" of the Company in any IPO-related filing made by the Company or the Key Shareholder Group Shareholders.
- (b) Except as may be expressly agreed to the contrary hereto, the Key Shareholder Group Shareholders shall, subject to compliance with applicable Laws, ensure that any Securities as may be required to comply with the statutory lock-in requirements imposed by applicable Law on the promoters of companies, if any, shall be contributed solely by the Key Shareholder Group Shareholders and none of the Investor Securities shall be offered for any lock-in applicable to the Key Shareholder or Key Shareholder Group Shareholders. The Investors shall have the right to review, approve and seek appropriate amendments to all documents related to the IPO, accounts or public disclosures to ensure compliance with the provisions of this Article 136.

NON-COMPETE AND NON-SOLICITATION

137. The Key Shareholder, the Key Shareholder Group and their respective Affiliates shall comply with their obligations under Clause 5.1 of the Agreement, and the Key Shareholder



and the Investor shall comply with their obligations under Clause 5.2 of the Agreement. The Company undertakes that it shall not, through any act or omission or otherwise, directly or indirectly, cause any breach of the Non-Compete and the Non-Solicitation obligations of the Key Shareholder, its Affiliates, or the Investor, as applicable, under Clause 5 of the Agreement.

138. The Parties acknowledge and agree that the restrictions in Clause 5.1 and 5.2 of the Agreement are considered reasonable for the legitimate protection of the Business and goodwill of the Company, but in the event that such restriction shall be found to be void under Law or otherwise, but would be valid if some part thereof was deleted or the scope, period or area of application were reduced, the restriction shall apply with the deletion of such words or such reduction of scope, period or area of application as may be required to make the restrictions contained in this Article 138 or Clause 5 of the Agreement valid and effective under Law and otherwise. Notwithstanding the limitation of this provision by any Law for the time being in force, the Parties undertake to at all times observe and be bound by the spirit of Clause 5.1 and 5.2 of the Agreement. Provided however, upon revocation, removal or diminution of the applicable Law or provisions, as the case may be, by virtue of which the restrictions contained in Clause 5.1 and 5.2 were limited as provided hereinabove, the original restrictions would stand renewed and be effective to their original extent, as if they had not been limited by the Law or provisions revoked.

EXERCISE OF RIGHTS

139. Without prejudice to the other provisions of these Articles, the Parties shall exercise all powers and rights available to them (including their voting rights and their rights as and in respect of Directors), in support of the provisions of the Transaction Documents and so as to procure and ensure that the provisions of the Transaction Documents are complied with in all respects by the Company.
140. The Key Shareholder Group Shareholder agrees that for the purposes of these Articles, the Key Shareholder and Key Shareholder Group will be considered as a single block of Shareholders and shall at all times act jointly.
141. The Parties agree and acknowledge that the Key Shareholder shall be liable to the Investors to procure that each of the Key Shareholder Group Shareholders performs his/her respective obligations under the Transaction Documents (including but not limited to in respect of voting their respective Shares, and transferring their respective Shares in terms of this Articles), and without prejudice to the right of the Investors to proceed against any of the Key Shareholder Group Shareholders, the Investors shall have recourse to the Key Shareholder to for any breach of any obligations of the Key Shareholder Group.
142. If there is any ambiguity, inconsistency or conflict between the provisions of the Agreement and the Memorandum and Articles (as the case may be), such ambiguity, conflict or inconsistency shall be resolved by promptly taking all such actions as are necessary to amend the Memorandum and Articles (as the case may be) to eliminate such inconsistency or ambiguity from the Memorandum and Articles (as the case may be) and to replace it with a term that is consistent with the Agreement. In the meantime, while any such amendments to the Articles (as the case may be) are pending, no Shareholder shall seek to enforce the provision of the Articles, as the case may be, that is being amended so as to avoid the inconsistency with the provisions of the Agreement.

INFORMATION RIGHTS, INSPECTION AND MONITORING

143. The Company shall keep and maintain complete and accurate books of account in which full and correct entries shall be made of all financial transactions and the Assets and Business in accordance with Indian GAAP.
144. The Company shall provide to the Investors or to any representative of the Investors (as the Investors may specifically notify) and each of the Investor Directors, the following information, with or without specific request from the Investor:
- (a) Audited annual financial statements (within 90 (ninety) days from the end of each Financial Year);
 - (b) Unaudited annual financial statements (within 45 (forty-five) days from the end of each Financial Year);
 - (c) Unaudited quarterly financial statements (within 30 (thirty) days from the end of each quarter of each Financial Year);



- (c) Unaudited monthly management information systems ("MIS") or other similar reports (in a format as specified by the Investor) with respect to each month (within 15 (Fifteen) days from the start of the following month);
 - (d) A proposed draft Business Plan for a Financial Year for approval in writing from the Investor, prior to being tabled before the Board (on or before 20th March for the forthcoming Financial Year);
 - (e) Within 7 (seven) Business Days, details of any litigation or judicial proceedings (including proceedings for winding-up or with respect to any notices received under the applicable Laws), proceedings or material dispute or adverse changes that impedes or which is likely to adversely affect the Company's Business or Assets or otherwise;
 - (f) Within 7(seven) Business Days, details of any withdrawal of material banking and/or credit facilities of the Company, together with a description of the Company's efforts to restore adequate banking and/or credit facilities.
 - (g) Minutes of meetings of Board, committees of the Board and Shareholders of the Company (within 15 (Fifteen) days of the occurrence of such events);
 - (h) Within 10 (ten) days of expiry of every quarter of a Financial Year, provide declaration on Securities held and Encumbered to banks and financial institutions in the Ordinary Course of Business (as permitted under Clause 4.2(d) of the Agreement) by each of the Key Shareholder Group Shareholders;
 - (i) Within 10 (ten) Business Days, details of any Force Majeure Event or any other event which results in or could result in any Material Adverse Change along with the estimated duration and the effect or probable effect which such Force Majeure Event is having or will have on the Company's performance and the measures which the Company and Key Shareholder are taking or proposes to take for alleviating the impact of such Force Majeure Event; and
 - (j) Such other financial and accounting reports and other information as the Investors may reasonably request.
145. The Company shall give full access to the Investors and its authorised representatives (including its counsel, accountants, auditors and other professional advisors) to visit and inspect and take copies of all records, reports, books, contracts and commitments of the Company in relation to its properties, Assets, Liabilities, corporate and financial affairs, and to discuss and consult its business, operations, actions plans, budgets and finances with the Directors and Key Management Persons upon reasonable notice of 5 (five) Business Days.
146. The Investors shall have the right to appoint an external auditor with the mutual agreement and at the cost (subject to a maximum of Rs. 10,00,000 as fees) of the Company to ensure compliance by the Company, Key Shareholder and the Key Shareholder Group with the terms and conditions and obligations contained in the Transaction Documents.
147. UNITED STATES PASSIVE INVESTOR COVENANTS
- (a) The Key Shareholder and the Company hereby agree and undertake that they shall comply with the covenants of the Key Shareholder and the Company under Clause 7.5 of the Agreement.

TRANSFER OF SECURITIES

148. Restriction on Transfer of Securities

- (a) The Key Shareholder Group Shareholders shall not Transfer any Securities or any right, title or interest in any Security held by them unless the Transfer is in conformity with the provisions of these Articles. Any Transfer or attempt to Transfer Securities by any of the Parties in breach of these Articles shall be null and void ab initio, and shall not be binding on the Company and the Company shall not register such Transfer.



- (b) Other than as provided in these Articles, the Key Shareholder Group Shareholders shall not place their Securities in a voting trust or enter into a voting agreement or similar arrangement with respect to their Securities. This prohibition shall not apply to proxies granted in accordance with the Articles and applicable Law.
- (c) The Shareholders hereby agree that the Transfer restrictions in these Articles (and subsequently incorporated into the Articles) shall not be capable of being avoided by the holding of Securities indirectly through any other Person, which Person (or its shares or interest or holding) can be sold/Transferred in order to dispose of an interest in the Securities.
- (d) Notwithstanding anything to the contrary contained in these Articles, the Parties agree that the restrictions under these Articles on Transfer by the Key Shareholder on the Securities held by them shall, subject to the Investor's written consent, not apply to any Encumbrance required to be created for the purpose of collateral to secure any loans or borrowings obtained by the Company in the Ordinary Course of Business.
- (e) If a Person holding Securities in accordance with the provisions of the Agreement and these Articles by virtue of being an Affiliate of a Party (such Party being hereinafter called the "Original Party"), ceases to be an Affiliate of the Original Party, the Original Party shall acquire or cause an Affiliate, to acquire, full and unconditional title in and to all of the Securities then held by such Person ceasing to qualify as an Affiliate. Notwithstanding anything contained in these Articles, this Article 148(e) shall not apply to any In-Specie Distribution.

149. Regulatory Approvals

Where any Investor requires Authorisations or shareholder consent for an acquisition or disposal of Investor Securities pursuant to these Articles then notwithstanding any other provision of these Articles the Investor shall only be obliged to acquire or dispose of Investor Securities once such consent or approval is obtained, and the Parties shall use their reasonable endeavours to obtain any such required approvals. In computing the period within which the transactions contemplated in Articles 148 to 153 should be completed, the time required for obtaining the necessary Authorisations shall not be included.

150. Transfer by the Key Shareholder

- (a) Lock in: Except as specifically permitted under Article 150(b) (Permitted Transfers) The Key Shareholder Group Shareholders shall not Transfer any of the Securities held by them till such time as the Investors hold 8 % (eight percent) of the Equity Share capital on a Fully Diluted Basis ("Lock In Period").
- (b) Permitted Transfers during Lock-in Period: During the Lock In Period, the following Transfer of Securities by the Key Shareholder Group Shareholders shall be permitted ("Permitted Transfers"):
 - (i) The Key Shareholder and/or the Key Shareholder Group shall be entitled to Transfer in aggregate, up to a maximum of 5% of the Equity Share capital collectively held by the Key Shareholder and the Key Shareholder Group on a Fully Diluted Basis (i.e. up to a maximum of 3% of the Equity Share capital on a Fully Diluted Basis) (the "Liquidity Shares") to any Third Party in case of any exigency. It is clarified that the Investors' Tag Along Right under Article 151 (Investor Tag Along Right) shall not apply to any Transfer under this Article 150(b)(i). The purchaser of such Liquidity Shares shall be required to sign a Deed of Adherence to such Transfer. The price per Equity Share for such Transfer of Liquidity Shares shall be determined through a value discovery process by an independent valuer appointed by the Company and Key Shareholder.
 - (ii) In addition to the Transfer of the Liquidity Shares by the Key Shareholder Group, the Key Shareholder Group shall be permitted to transfer any of their Securities to the Key Shareholder, and such Transfer shall not be subject to any restrictions under this Article including the Tag Along to the Investor.



- (c) Transfers Post the Lock-in Period: Post the Lock In Period and subject to the provisions of Article 148 above, the Key Shareholder Group Shareholders shall be entitled to Transfer the Securities held by them provided however that (i) the Key Shareholder shall give the Investors at least 14 (fourteen) Business Days' prior written intimation before the date of entering into any agreement, arrangement or understanding with respect to such Transfer; and (ii) such Transfer shall be subject to the Investors' Tag Along Right.

151. Investor Tag Along Right

In the event any of the Key Shareholder Group Shareholders is desirous of making a Transfer of any Securities held by him to any Person ("Purchaser") pursuant to Article 150(c), then such Person ("Transferring Shareholder") shall ensure that the Investors have the option of exercising their tag along right in terms of this Article ("Tag Along Right"):

- (a) The Transferring Shareholder shall deliver a written notice to the Investors offering ("Tag Notice") setting forth the following details: (i) the number of Securities proposed to be sold to the Purchaser ("Sale Securities"); (ii) the consideration, terms of payment and all other terms and conditions for the proposed Transfer; and (iii) the identity of the Purchaser. In the event that the proposed consideration for the Transfer includes consideration other than cash, the Tag Notice shall include a calculation of the FMV of such consideration as determined by any Big Four Accounting Firms, or any other accounting firm mutually acceptable to the Parties, appointed and remunerated by the Transferring Shareholder. It is further agreed between the Parties that in the event that the proposed consideration for the said Transfer includes consideration other than cash, then the Investors shall have an option to call for and receive the cash equivalent of any non-cash component of the consideration to be received by the Transferring Shareholder.
- (b) Upon receipt of the Tag Notice, each Investor shall be entitled to (but not obliged to) exercise its Tag Along Right by offering for sale the Investor Securities held by it up to a maximum equal to the Investor Tag Limit (computed on a Fully Diluted Basis), for the consideration and on terms and conditions mentioned in the Tag Notice or any other terms and conditions as may be mutually agreed in writing between the Investor, the Transferring Shareholder and the Purchaser (the above terms, as applicable, shall be referred to as "Tag Along Terms"). Each Investor shall be entitled to exercise the Tag Along Right by delivering a notice in writing to the Transferring Shareholder ("Tag Along Acceptance Notice") within 15 (Fifteen) days from the date of the Tag Notice ("Tag Along Acceptance Period") setting out the number of Investor Securities which the Investor desires to sell to the Purchaser, within the Investor Tag Limit ("Tag Along Securities"). The Tag Along Acceptance Notice shall constitute a binding obligation: (i) on the Transferring Shareholder to ensure that the Purchaser purchases the Tag Along Securities, and (ii) on the Investor to Transfer the Tag Along Securities to the Purchaser, simultaneously with the Sale Securities, and in accordance with the Tag Along Terms.
- (c) If any Investor issues the Tag Along Acceptance Notice, the closing of any purchase of the Tag Along Securities by the Purchaser from the Investor shall take place simultaneously with the closing of the purchase of any Sale Securities by the Purchaser from the Transferring Shareholder, which shall in no case be later than 60 (Sixty) days from the expiry of the Tag Along Acceptance Period. At such closing, the Investor shall deliver duly stamped and endorsed certificates representing the Tag Along Securities, accompanied by duly executed and/or stamped instructions/ instruments of transfer in relation to such Tag Along Securities. Such Investor shall make such standard representations and warranties regarding the Investor's rights, title and interest in the Tag Along Securities. Such Investor will not be required to provide any other representation, covenants or undertakings, or incur any obligations to the Purchaser or any Person.
- (d) If the Purchaser is not willing to purchase the Tag Along Securities from an Investor, then the Transferring Shareholder shall not be entitled to Transfer any of the Sale Securities to the Purchaser. If the Purchaser is willing to purchase only a part of the Sale Securities and the Tag Along Securities,



the number of Sale Securities to be sold to the Purchaser shall be proportionately reduced so as to ensure the Investor is able to sell its proportionate Tag Along Securities.

- (e) Any Purchaser purchasing the Tag Along Securities shall deliver at such closing, payment in full for the Tag Along Securities and the Sale Securities (or part thereof in accordance with sub-article (c) above, as the case may be) to their respective holders in accordance with the Tag Along Terms. At such closing, all of the parties to the transaction shall execute such additional documents as may be necessary or appropriate to affect the sale of such Securities to the Purchaser.
- (f) If, (a) the Tag Along Acceptance Notice is not delivered by any Investor prior to expiry of the Tag Along Acceptance Period; or (b) the Investors indicate in writing to the Transferring Shareholder that they shall not exercise the Tag Along Right, the Tag Along Right will lapse, and the Transferring Shareholder shall thereafter be free to dispose of the Sale Securities within a period of 60 (sixty) days from the expiry of the Tag Along Acceptance Period, provided however that it shall (a) not sell the Sale Securities to any Person other than the Purchaser; (b) not sell the Sale Securities to the Purchaser for a consideration higher or more than 5% lower than Transfer Price, than the consideration and the terms set out in the Tag Notice.
- (g) If the (a) Transfer of the Sale Securities to the Purchaser within 60 (sixty) days from the Tag Along Acceptance Period in accordance with Article 151(c); or (b) the sale of the Tag Along Securities by the Investors do not take place within the 60 (Sixty) days from the expiry of the Tag Along Acceptance Period in accordance with Article 151(f), the Tag Notice and the Tag Along Acceptance Notice (if any), as the case may be, shall lapse and the provisions of Article 151 shall apply de novo to any proposed Transfer of Securities by the Transferring Shareholder, including the requirement for the Transferring Shareholder to issue a fresh Tag Notice, and obtain another Tag Along Acceptance Notice / approval (if required) from the Investor.
- (h) Notwithstanding anything contained in these Articles, in the event the Key Shareholder Group Shareholder is desirous of making a Transfer of any Securities held by them to any Person pursuant to Article 150(b) and such Transfer results in a change in Control of the Company, the Investors shall have a Tag Along Right to the extent of Investors' entire shareholding in the Company on Fully Diluted Basis and the provisions laid down in this Article shall mutatis mutandis be applicable to such Transfer by the Key Shareholder Group Shareholder.
- (i) For the purposes of this Article "Investor Tag Limit" shall mean (a) in case no change in Control of the Company is taking place pursuant to a Transfer as contemplated herein, {number of Equity Shares represented by the Sale Securities on a Fully Diluted Basis / number of Equity Shares of the Company (on a Fully Diluted Basis)} * (number of Equity Shares held by the Investors on a Fully Diluted Basis).

For the purpose of this Article "Control" with respect to a Person, includes the right to appoint majority of the directors or to control the management or policy decisions of such Person exercisable by a Person or Persons acting individually or in concert, directly or indirectly, including by virtue of their shareholding or management rights or shareholders agreements or voting agreements or in any other manner and includes, without prejudice to the generality of the foregoing, where the acquirer along with person(s) acting in concert with the acquirer, subsequent to such transaction are, directly or indirectly holds 51% in the Company.

152. Investor Transfer/Encumbrance

- (a) Each Investor shall be free to Transfer any of their Investor Securities to any Affiliate without any restrictions whatsoever, subject to the Affiliate executing a Deed of Adherence.
- (b) Notwithstanding anything to the contrary stated in the Transaction Documents, there shall be no obligation whatsoever on the Investors to provide any debt or other form of financial assistance to the Company or to provide any guarantees in relation to any debt or financial assistance to be obtained by the Company, from any other Person. Further, the Investor Securities shall not be offered or required to be offered as collateral to secure any loans or borrowings obtained



by the Company from any banks, financial institutions, non-banking financial companies or otherwise, and hence no Encumbrance shall be created for this purpose over the Investor Securities at any time during the subsistence of these Articles.

- (c) In relation to any Transfer of Securities by any Investor, the Investor may choose, at its sole discretion, to Transfer such rights as it may deem fit, to such Transferee. It is clarified that the rights in relation to the Reserved Matters shall be exercised only by either the acquirer or the Investors, in case of partial Transfer of Investor Securities. It is further clarified that the transferees shall not be entitled to any rights that the Investors are not entitled to.

153. Deed of Adherence

As a precondition of any Transfer under Articles 148 to 152 above, the Person to whom the Securities are transferred must execute a Deed of Adherence (in accordance with the appropriate form as attached to these Articles) to become a party to the Agreement and become legally bound by the terms of the Agreement and these Articles prior to or simultaneous with the Transfer of the Securities. In the event of a Transfer being made by the Investors, the Investors shall identify in such Deed of Adherence which of the rights of the Investors will be Transferred to such acquirer. The Deed of Adherence as attached to these Articles shall accordingly be modified by the Investors.

ANTI-DILUTION AND PRE-EMPTIVE RIGHTS

154. Any issuance or allotment of any Securities by the Company shall be subject to the provisions of this Article 154.

155. Anti-Dilution

- (a) Subject to the provisions of Article 133 (Reserved Matters), in the event of any issue and allotment of Securities where the Price at which such Securities are issued is below the Investor Per Share Price (as readjusted for stock split, consolidation, reorganization, recapitalization, sub-division, amalgamation, reconstruction or similar event), the Investors shall be entitled, at their option, to subscribe to additional Securities at the lowest price permissible under applicable Law as per the provisions of Schedule 2 (Anti-Dilution Entitlement), and/ or at the option of the Investor, to adjust the conversion formula such that the Investors receives the additional Shares, as calculated in Schedule 2 (subject to applicable Law) for the Investor Securities and/ or at the option of the Investors, to transfer such additional Shares, as calculated in Schedule 2 to any Person who is not a Competitor and without transferring any rights available to the Investors under these Articles to such Person, along with the Anti-Dilution Entitlement provided to such Person; provided further that the Investors shall not be entitled to this right of anti-dilution in the following circumstances:

- (i) Any bonus issue of Securities;
- (ii) Any stock split, consolidation or other similar action in respect of the Share capital of the Company;
- (iii) Any other reorganization, recapitalization, sub-division or reduction of capital, buy-back of securities, reclassification or other reconstruction or adjustment or similar event in respect of the Equity Share capital and any amalgamation or reconstruction affecting the Equity Share capital;
- (iv) Any issue and allotment of Equity Shares pursuant to conversion of any Share Equivalents; or;
- (v) Any issuance of Securities to any Potential Investor due to refusal by the Investors in exercise of their Pre-emptive Right as per Article 157 below.

156. Investors' Shareholding Percentage to be Maintained

The Company and the Key Shareholder Group Shareholders shall ensure that the aggregate percentage of Investor Securities in the Company, on a Fully Diluted Basis, immediately prior to any action of stock split, stock dividend, consolidation, adjustment, reconstruction, corporate re-organization or such similar action by the Company, shall



not reduce post consummation of such action.

157. Pre-Emptive Rights

- (a) Without prejudice to the Investor's anti-dilution right in accordance with Article 155 above and subject to the provisions of Article 133 (Reserved Matters), in the event of issue of Securities other than as set out in Articles 155(a)(i) to 155(a)(v) above, at any point of time ("Fresh Offering") to any Person ("Potential Investor"), the Company shall offer and the Key Shareholder Group Shareholders shall cause the Company to offer to the Investor, such number of Securities forming part of the Fresh Offering, in proportion to the Investor's shareholding percentage in the Equity Share capital (on a Fully Diluted Basis) immediately prior to the Fresh Offering ("Investor Entitlement Securities"), and on terms and conditions no less favourable than those being offered to any other Person in the proposed Fresh Offering ("Pre-emptive Right").
- (b) The Fresh Offering shall be carried out by the Company by issuing a written notice to the Investors ("Issuance Notice") setting forth in detail the terms of the Fresh Offering, including:
 - (i) the proposed issuance price ("Issuance Price");
 - (ii) the time period for subscribing, shall be 60 (sixty-five) days from the date of the receipt of the Issuance Notice, unless extended for such period as may be mutually agreed to between the Company and the Investor; and
 - (iii) the number of Investor Entitlement Securities.
- (c) If any Investor is desirous of exercising the Pre-emptive Right, then it shall inform the Company in writing ("Pre-Emptive Notice") within a period of 21 (twenty-one) Business Days from the date of receipt by the Investor of the Issuance Notice stating its desire to exercise its Pre-emptive Rights and specifying the number of the Investor Entitlement Securities to which it proposes to subscribe ("Accepted Securities"); and
- (d) Such Investor may exercise the Pre-emptive Rights either by itself or through its Affiliate(s), subject to such Affiliate(s) executing a Deed of Adherence Provided the Affiliate (s) are not Competitor(s).
- (e) If an Investor sends a Pre-Emptive Notice, then within the time period prescribed in the Issuance Notice, the Company shall issue, and such Investor shall pay for and subscribe to, simultaneously along with other subscribers to the Fresh Offering, the Accepted Securities at the Issuance Price and on the terms and conditions set out in the Issuance Notice; Provided that in the event that any Investor exercises its Pre-Emptive Rights and the Accepted Securities are less than the Investor Entitlement Securities, the Company shall be entitled to issue the balance Investor Entitlement Securities to the Potential Investor at a consideration which is not lower than the Issuance Price, which would then result into the dilution of the Investors.
- (f) Except as otherwise provided in this Article, failure by the Investors to either (i) give the Pre-Emptive Notice within the 21 (twenty one) Business Days' period as provided in Article 157(c) above; or (ii) settle the payment of consideration for the Accepted Securities to the Company in accordance with the conditions contained in Article 157(e), shall be deemed a waiver by the Investors of its rights under this Article 157 with respect to such Fresh Offering and the Company shall be entitled to issue the Issuance Securities to the Potential Investor within 60 (Sixty) days of the issuance of the Issuance Notice at a consideration which is not lower than the Issuance Price, which would then result into the dilution of the Investors; provided that if the Investors fail to give the Pre-Emptive Notice required under this Article 157(c) solely because of the Company's failure to issue the Issuance Notice or to fail to comply with the notice provisions of Article 174 in such issuance, then the Company shall not issue Securities to the Potential Investor pursuant to this Article 157 and if purported to be issued, such issuance of Securities shall be void.



- (g) The issue of Securities pursuant to the Fresh Offering shall be completed within the time set out in the Issuance Notice, failing which the right of the Company to make the Fresh Offering shall lapse and the provisions of this Article 157 shall once again apply to such Fresh Offering.

158. ESOP/ Employee Benefit Plan

- (a) The Company shall formulate and adopt an employee stock option plan for incentivising the existing and future employees of the Company (excluding the Key Shareholder and the Key Shareholder Group), the terms and conditions whereof shall be determined by mutual consent of the Key Shareholder and the Investors ("ESOP Plan"). The ESOP Plan shall provide for transfer of Equity Shares amounting to a maximum of 2% (two percent) of the total Equity Share capital on a Fully Diluted Basis as of the date of adoption of the ESOP Plan and transfer of such 2% Equity Shares by the Key Shareholder shall not be dilutive to the Investor Securities. The mechanism for the same would be mutually decided between the Key Shareholder and the Investors. In the event that the Key Shareholder represents to the Investors that he does not wish to create the ESOP Plan for the entire 2 % (two percent) as mentioned above, then the unallocated Equity Shares shall be transferred to an employee welfare trust for the benefit of the employees (other than the Key Shareholder and Key Shareholder Group) and the terms and conditions of such trust shall be determined by mutual consent of the Key Shareholder and the Investors.
- (b) All terms and conditions of the ESOP Plan (excluding the exercise price), shall be and approved by the Board, subject to compliance with Article 133 (Reserved Matters). The exercise price of the stock options shall be determined by the Key Shareholder, subject to such exercise price being not more than 80 % (eighty percent) of the Investor Per Share Price.
- (c) The vesting of the stock options under the ESOP Plan shall be governed by a committee constituted by the Board in accordance with the provisions of these Articles where an Investor Director would be a part of such committee.
- (d) In the event of any expansion of the ESOP Plan beyond what is contemplated herein pursuant to an agreement in this regard between the Key Shareholder and the Investors, the Investor, Key Shareholder Group and the Key Shareholder's shareholding in the Company shall be diluted pro-rata to their respective shareholding in the Equity Share capital on a Fully Diluted Basis, pursuant to the issuance of any Securities arising from the exercise of any employee stock options issued pursuant to the ESOP Plan, and the Investors shall not be entitled to their rights under Article 155 for such further issuance.

MORE FAVOURABLE RIGHTS

159. The Company, Key Shareholder and Key Shareholder Group shall not, except with the Investor's consent provide any future investor in the Company with rights, benefits or privileges in relation to the Company which are more favourable than those provided to the Investors hereunder.
160. In the event any rights, benefits or privileges provided to any future investor by the Company are more favourable than the rights, benefits or privileges provided to any of the Investors hereunder, the Company, Key Shareholder and Key Shareholder Group shall forthwith take such actions, including amendment of the terms hereof, terms of the Investor Securities and the Articles, to provide the Investors with the relevant more favourable rights, unless expressly waived by the Investors in writing.

RIGHT TO FINANCE/INVEST

161. The Company, the Key Shareholder Group Shareholder and the Investor undertake to comply with their respective obligations under Clause 11 of the Agreement.
162. Nothing contained in Article 161 shall affect the fiduciary duties of an Investor Director.

EXIT

163. The Company and the Key Shareholder shall make best efforts to provide an exit to the Investors for Securities held by them through the following mechanism as set out below, at a price and on terms and conditions: (a) mutually acceptable to the Investors and the Key Shareholder in relation to the exit mechanism set out in Articles 164 and 165 below; and (ii) acceptable to the Investors in relation to the exit mechanism set out in Article 166



below.

The Company shall, and the Key Shareholder that procure that the Company shall appoint investment banker / merchant banker ("Banker") (acceptable to the Investors) by 30 September 2024 to conduct a process for (a) the sale of not less than 100% of the Securities of the Company to a third party purchaser (whether a strategic investor or a financial investor, and including a Competitor) ("Third Party Purchaser"), in one or more tranches, at a price and on terms and conditions acceptable to both the Investors and the Key Shareholder (such sale, a "Strategic Sale") in accordance with Article 164 below; or (b) an IPO, in accordance with Article 165 below (such determination of whether a Strategic Sale or IPO will be conducted shall be made by the Investors).

164. Strategic Sale

- (a) If the Investors decide to commence the process for a Strategic Sale as per Article 163, the Banker may procure offers for Strategic Sale by way of auction or private sale or in such other manner which is most effective for value maximization of the Securities of the Investors. The costs and expenses payable to such Banker shall be borne by the Company.
- (b) In a Strategic Sale, Investors should receive consideration for their Securities fully by way of cash, and there should not be any withholding (unless required under applicable Laws), escrow or deferred consideration unless agreed otherwise by the Investors.
- (c) In a Strategic Sale, if required by the Third-Party Purchaser, Investors shall only be required to provide customary warranties to the Third-Party Purchaser relating to clear title to their Investor Securities, and legal authority and capacity of the Investors to transfer such Investor Securities. If required by the Third-Party Purchaser, the Company and the Key Shareholder shall provide such Third-Party Purchaser with all representations, warranties, indemnities (including in relation to the Company and its business) subject to customary limitations of liabilities and procedures and covenants (including any non-compete or non-solicit obligations of the Key Shareholder as may be discussed between the Company, Key Shareholder and Third-Party Purchaser).

165. IPO

If the Investors decide to commence the process for an IPO as per Article 163 (or subsequently decide to commence the IPO process at any point in time), the Company and the Key Shareholder shall make best efforts to conduct an IPO to facilitate the exit of Investors, in accordance with the provisions below:

- (a) With the prior written consent of the Investors, the Company shall retain 1 (one) or more reputed Banker/ merchant banker/investment bankers/advisors/underwriters, to advise the Company regarding its options with respect to an IPO and to manage and/or underwrite the IPO.
- (b) The Company, the Key Shareholder and the Key Shareholder Group shall take all such steps, and extend all cooperation to each other and the investment banks, merchant banker, lead managers, underwriters and other Persons as may be required for the purpose of a IPO such as (i) preparing and signing the relevant offer documents; (ii) conducting road shows with adequate participation of senior management; (iii) entering into appropriate and necessary agreements; (iv) providing all necessary information and documents necessary to prepare the offer documents; (v) filing with appropriate Governmental Authorities; and (vi) obtaining any necessary consents from any Person and all relevant Governmental Approvals in relation to such IPO. The Company, and the Key Shareholder Group Shareholders shall ensure that the IPO complies with applicable Law and Stock Exchange listing requirements.
- (c) The Key Shareholder Group Shareholders agree that they shall exercise all voting rights and shall do all acts, deeds and things as may be required or desirable to effectuate the IPO.
- (d) Any IPO shall necessarily have an offer for sale component as prescribed by the Investors, subject to the Applicable Laws. Each Investor shall have the right (but not the obligation) to sell, as a part of such offer for sale, its Investor Securities to the maximum extent permissible under applicable Law, in priority to the other Shareholders. Upon any Investor offering its Investor Securities for sale at the time of the IPO, the Company and the Key Shareholder shall complete all compliance and necessary formalities to ensure the listing of such Securities. In



the event that the Investors choose not to exercise its rights under this Clause in relation to an IPO, the Company and the Key Shareholder Group Shareholders shall ensure that the requisite number of Equity Shares are made available to the public, whether by way of issuance of new Equity Shares by the Company and/or by way of sale of existing Equity Shares held by the Key Shareholder, in order to meet the applicable minimum listing criteria for the purposes of the IPO. The timing, size of the issue, Stock Exchange of listing, mode, underwriters, legal advisors and other matters and/or terms of any IPO shall be based on the advice of the investment banker or merchant banker engaged by the Company in connection with such IPO, but shall be such as is approved by the Board or a duly constituted committees thereof and with prior written consent of the Investors.

Provided that the term "other matters and / or terms of any IPO" will not constitute pricing and allocation mechanism.

- (e) The Company and the selling shareholders offering their respective Equity Shares in the IPO, shall bear and pay all expenses incurred in connection with IPO, as agreed in the offer agreement to be entered into by and amongst the Company, the selling shareholders and the book running lead managers.

166. Secondary Sale

- (a) The Company and Key Shareholder shall make best efforts to provide a full exit to the Investors, by way of a transfer of all Investor Securities of the Investors to a third-party purchaser (a financial or strategic purchaser or group of purchasers, not being a Competitor on or before 31 March 2027, but including a Competitor after 31 March 2027), in one or more tranches, at such price and on such terms and conditions as acceptable to the Investors (such sale being a "Secondary Sale").
- (b) In a Secondary Sale, Investors should receive consideration for their Securities fully by way of cash, and there should not be any withholding (unless required under applicable Laws), escrow or deferred consideration unless agreed otherwise by the Investors.
167. In a Secondary Sale, if required by the third-party purchaser, Investors shall only be required to provide customary warranties to the third-party purchaser relating to clear title to their Investor Securities, and legal authority and capacity of the Investors to transfer such Investor Securities. If required by the third-party purchaser, the Company and the Key Shareholder shall provide such third-party purchaser with all representations, warranties, indemnities (including in relation to the Company and its business) subject to customary limitations of liabilities and procedures) and covenants (including any non-compete or non-solicit obligations of the Key Shareholder as may be discussed and agreed between the Company, Key Shareholder and Third-Party Purchaser).
168. It is clarified that after 30 September 2024, the abovementioned provisions in relation to Strategic Sale, IPO and Secondary Sale shall apply simultaneously, and continue to operate without any limitation of time.

169. Drag Along Right

- (a) In the event the Investors have not been able to exit fully by 31 March 2027, from 1 April 2027, the Investors (the "Dragging Shareholders"), shall have the right (but not the obligation) to require the Key Shareholder and the Key Shareholder Group (together the "Dragged Shareholders") to sell all (and not less than all) of the Securities held by the Dragged Shareholders ("Dragged Securities") to any third party purchaser (including any Competitor) (such purchaser, the "Drag Purchaser"), in a sale of Securities by the Investors to the Drag Purchaser ("Drag Along Right").
- (b) If the Dragging Shareholders choose to exercise the Drag Along Right, they shall provide a written notice to the Dragged Shareholders ("Drag Notice"), specifying: (i) the proposed consideration payable and the terms on which the Securities are proposed to be Transferred to the Drag Purchaser (the price per Security for the Dragged Securities shall be the same as the price per Security at which the Securities of Dragging Shareholders are being purchased by the Drag Purchaser); (ii) the identity of the Drag Purchaser; (iii) the indicative timelines for the sale of the Securities to the Drag Purchaser and (iv) a confirmation that that the Drag Purchaser has been informed of the drag right set out in this Article 169, and that the Drag Purchaser has agreed to purchase the Securities in accordance with the terms of this Article 169.
- (c) Upon receipt of the Drag Notice, all Dragged Shareholders shall be obligated to sell to the Drag Purchaser and the Drag Purchaser shall be obligated to purchase all Dragged Securities of the Company, basis the terms set out in the Drag Notice, and



[Handwritten signature]

within the timelines indicated in the Drag Notice.

- (d) Each Dragged Shareholder hereby agrees and acknowledges that the obligations under this Article 169 will be binding on each Dragged Shareholder, and each Dragged Shareholder shall undertake all necessary actions, and shall cooperate to the fullest extent to ensure the Transfer of its Securities to the Drag Purchaser as per the provisions of this Article.
- (e) If required by the Drag Purchaser, (i) the Company, the Key Shareholder and the Key Shareholder Group shall provide such Drag Purchaser with all representations, warranties, indemnities in relation to the authority, capacity and title of Dragged Securities, (ii) the Company and the Key Shareholder shall provide such Drag Purchaser with all other representations, warranties, indemnities (subject to such customary limitations of liabilities and procedures as are set out in Schedule 9 of the Erstwhile IA) including in relation to the Company and its business and covenants (including any non-compete or non-solicit obligations of the Key Shareholder); and (iii) the Investors shall provide such warranties to the Drag Purchaser as may be discussed and agreed between the Investors and the Drag Purchaser at such point in time.

170. Free Transfers by the Investors

Till the expiry of the Exit Period each Investor shall have the right (but not the obligation) to Transfer all their Investor Securities in whole or part to any Person whatsoever (excluding to any Competitor, unless such Transfer is pursuant to Article 164 above). Notwithstanding the sentence above, it is agreed between the Parties that each Investor shall be free to Transfer any of their Investor Securities at any point in time pursuant to any In Specie Distribution (irrespective of whether the transferees are Competitors or not), without any restrictions whatsoever, subject to transferee(s) executing a Deed of Adherence. In the event that the Investor(s) is/are unable to get full exit by 31 March 2027 ("Exit Period"), then upon the expiry of such Exit Period, the Investors shall have the right (but not the obligation) to Transfer all their Investor Securities in whole or part to any Person whatsoever (including to any Competitor) without any restrictions on such Transfer, and shall have the right to assign any and all its rights under the Transaction Documents to such transferee provided that in case the Transfer of Investor Securities in whole or in part is to a Competitor (post the Exit Period), the right of the Investors and attached to the Investor Securities under this Agreement and consequently under the Restated Articles under Article 154 to 158 (Anti-Dilution and Pre-Emptive Rights), Article 159 & 160 (More Favorable Rights) and Article 188 (Liquidation Preference), shall not be transferred to such Competitor, and therefore rights of the Investors and attached to the Investor Securities under this Agreement and consequently under the Restated Articles to be transferred to such Competitor shall be: (a) right to nominate Investor Director(s) as per Article 127(a) (and related quorum rights) provided that, the Investor and such transferee shall on a best efforts basis endeavour that: (i) such director appointed by the transferee shall act as an executive director and shall not be appointed as a non-executive nominee director on the Board; and (ii) the promoter of such transferee shall not be appointed as a director on the Board; (b) right to form quorum of a shareholders meeting as per Article 132(e); (c) reserved matter rights as per Article 133; (d) right to receive information as per Article 144 and inspection right under Article 145; (e) Investor Tag Along Right as per Article 151; (f) free transferability right as per Article 152; (g) right to finance/invest as per Article 161 & 162; (h) exit rights as per Article 163 to 171 (provided that the terms and conditions for such exit including the timelines thereof shall be mutually agreed between the Investors and the transferee at such point in time, and the terms and timelines in relation to the exit as set out in Article 163 to 171 herein shall not be deemed to be extended to such transferee); (i) right to initiate and participate in the consequences upon occurrence of an event of default as per Article 172 & 173; (j) special deadlock as per Article 181 to 183; (k) further rights issuance as per Clause 184; (l) rights in subsidiaries as per Clause 186; and (m) right to assign as per Clause 19.12 of the Agreement. In addition to the foregoing, the Parties hereby agree that the Investors shall not be entitled to assign its rights to such Competitor in relation to the obligations of the Company/ Key Shareholder under Clauses 4.1, 4.2, 4.5, 5, 6.2, 6.3, 8.1 and 8.3 of the Agreement, which shall be mutually determined between the transferee and the Company and the Key Shareholder at such point in time. The Company and the Key Shareholder Group Shareholders shall facilitate and assist in any such Transfer as mentioned above (including provision of any information relating to the Company and its business in a time frame) and shall provide, and shall ensure that the management of the Company provides, such transition support, as may be reasonably requested by the Transferee and/or the Investor. Further the Key



Shareholder Group Shareholders and the Company shall provide all reasonable assistance including management meetings, business plan, information, representations and warranties (including in relation to the Company and its Business), indemnities subject to customary limitations of liabilities and procedures and covenants (including non-compete and non-solicit) as may be discussed and agreed between the Company, Key Shareholder and Third Party Purchaser, as may be required to consummate the transaction.

171. In case the Investors have been provided with any one of the exit options contained in Articles 164 to 166 in relation to the entire shareholding of the Investors, on the terms and conditions and the price acceptable to the Investors in writing (at the definitive binding agreement stage), and subsequently, the Investors either choose to exit partially or choose not to exit at all (for reasons solely attributable to the Investors, and not for any other reasons including any regulatory or third party approvals required for such transaction not being obtained, or the binding agreement(s) being terminated by any party other than the Investors), then the Investors shall not have the right to exercise Drag Along Right as per Article 169, and claim an Event of Default on account of the Investor not having exited fully. It is clarified that all the exit rights of the Investors shall continue at all points in time.

EVENTS OF DEFAULT AND CONSEQUENCES OF EVENT OF DEFAULT

172. Events of Default

Subject to the provisions of Article 189 (Governing Law and Dispute Resolution), the occurrence of any of the following events or circumstances shall constitute an "Event of Default":

- (a) the Company and/or the Key Shareholder Group Shareholder committing any breach of Article 133 (Reserved Matters), Articles 137 to 138 (Non-Compete and Non-Solicitation), Articles 148 to 153 (Transfer of Securities), and fails to remedy the breach within 120 (one hundred and twenty) days of being specifically required in writing to do so by the Investors;
- (b) the Company and/or the Key Shareholder have decided to conduct an IPO in terms of Article 165 and subsequently the Company or the Key Shareholder without the specific written consent of the Investors decide not to complete such IPO. It is clarified that non completion of the IPO due to regulatory issues or market driven conditions, or non-completion due to the merchant banker declining to proceed with the IPO shall not constitute an Event of Default;
- (c) the Key Shareholder committing fraud upon the Company and/or the Investors which has been established before an arbitrator or a court of competent jurisdiction;
- (d) the Company and/or the Key Shareholder Group Shareholder committing any material breach of the covenants/obligations under the Transaction Documents and fails to remedy the breach within 120 (one hundred and twenty) days of being specifically required in writing to do so by the Investors;
- (e) any arrangements, mergers, acquisitions, change of Control (except as it may be permitted pursuant to this Agreement), amalgamations, consolidations, spin-offs, sale of substantial Assets, compromise with creditors, other similar or related actions by the Company which is in contravention of the terms of the Transaction Documents;
- (f) Fundamental Representations and Warranties (as defined in the Erstwhile IA) of the Key Shareholder, Company and/or the Key Shareholder Group under the Transaction Documents are found to be misleading or incorrect or untrue in any respect;
- (g) any wilful misrepresentations of representations and warranties of the Key Shareholder, Company under the Transaction Documents which results into Loss of Rs. 5,00,00,000 (Rupees Five Crore only) to the Investors;
- (h) occurrence of any Insolvency Event in respect of the Company or the Key Shareholder; or
- (i) the Business ceases or any material subsidiary of the Company ceases its business or the Key Shareholder ceases to operate the Business as he was



operating at the time of Closing (as defined in the Erstwhile IA), which has not been remedied within 120 (one hundred and twenty) days of being specifically required in writing to do so by the Investors.

173. Consequences of an Event of Default

- (a) If any Event of Default occurs, the Company and the Key Shareholder shall forthwith give notice thereof to the Investor in writing, specifying the nature of such Event of Default or of such event and the remedies proposed to be taken to cure the same.
- (b) Upon occurrence of any Event of Default and expiry of the cure period in respect thereof, the Investors shall, at their option, without derogation from the rights and remedies available to the Investor under the Transaction Documents and/or under applicable Law, be entitled to exercise the rights as set out in this Article 173 by giving a notice in writing to the Company and the Key Shareholder ("Default Notice"):
- (c) Upon the Investor issuing the Default Notice, the Investor shall at its option:
 - (i) Require the Company and the Key Shareholder to, within 15 (Fifteen) days of the date of the Default Notice, cause the Company to buy back the Investor Securities, and/ or the Key Shareholder shall purchase the Investor Securities. It being hereby clarified and agreed that, notwithstanding anything contrary contained herein the Investors shall have the right to require the Key Shareholder to purchase the Investor Securities in accordance with this Article 173(c)(i) only upon the occurrence of the Event of Default set out in Article 172(c) above;

Provided that such buy-back by the Company or the Purchase by the Key Shareholder of the Equity Shares of the Investors shall be at a price per Security that shall be at the highest price permitted under applicable Law subject to a maximum of a price that shall provide the Investors with 24% IRR on the IBEF II Investment Amount or IBEF IIA Investment Amount towards the Investor Securities held by the relevant Investor, or FMV of the Equity Shares held by the Investors, whichever is higher.

OR

- (ii) The Investors shall have the right to Transfer the Investor Securities to any Person and the right to require any or all Persons in the Key Shareholder Group Shareholder to sell any or all Securities held by them ("Key Shareholder Dragged Securities") provided however that (a) the Key Shareholder Dragged Securities and Investor Securities being Transferred shall constitute a maximum of 50.5% (fifty point five per cent) of the Equity Share capital if the purchaser is not a Competitor; or (b) in case the Purchaser is a Competitor, then the Key Shareholder Dragged Securities and Investor Securities being Transferred shall constitute 50.5% (fifty point five per cent) of the Equity Share capital.
- (d) In the event that the Investors exercise their rights under 173(c)(i) above, and the Company and Key Shareholder fail to complete such buy-back or purchase of the Investor Securities (as the case maybe), the Investors shall have the right under Clause 173(c)(ii) above.
- (e) It is hereby clarified that in respect of an Event of Default, if the Investor decides to invoke its rights under Indemnity clause of the Erstwhile IA, the Investor will then not be entitled to claim any rights under Articles 172 & 173 (Event of Default and Consequences of Event of Default) and vice versa.

NOTICES

- 174. Any notice or other communication provided for or required under these Articles shall be in writing and may be first transmitted by email transmission, and then confirmed by postage, prepaid registered post with acknowledgement due or by internationally recognised courier service, in the manner, as elected by the Party giving such notice at the recipient's address stated below:



- (a) In the case of notices to **IBEF II**:

Address: 12th Floor, Motilal Oswal Tower, Junction of Gokhale Road & Sayani Road, Prabhadevi, Mumbai 400025.

Email: naveen.gupta@motilaloswal.com

For attention of: Mr. Naveen Gupta

- (b) In the case of notices to the **IBEF IIA**:

Address: Apex House, Bank Street, Twenty-Eight, Cybercity, Ebene, Mauritius 72201

Email: jihane.muhamodsaroar@apexfs.group

For attention of: Jihane Muhamodsaroar

- (c) In the case of notices to the **Company**:

Address: 503/504, 5th Floor, A Wing, Marathon Futurex, Mafatlal Mills Compound, N.M. Joshi Marg, Lower Parel (East), Mumbai-400013

Email: jawahar@glasswallssystem.com

For attention of: Mr. Jawahar Hemrajani

- (d) In the case of notices to the **Key Shareholder**:

Address: 503/504, 5th Floor, A Wing, Marathon Futurex, Mafatlal Mills Compound, N.M. Joshi Marg, Lower Parel (East), Mumbai-400013

Email: jawahar@glasswallssystem.com

For attention of: Mr. Jawahar Hemrajani

- (e) In the case of notices to the **Key Shareholder Group**:

Address: 503/504, 5th Floor, A Wing, Marathon Futurex, Mafatlal Mills Compound, N.M. Joshi Marg, Lower Parel (East), Mumbai-400013

Email: jawahar@glasswallssystem.com

For attention of: Mr. Jawahar Hemrajani

175. All notices and other communication shall be deemed to have been validly given on (i) the same day if sent by email, (ii) the day of receipt, if sent by courier, or (iii) the expiry of 7 (seven) days after posting, if sent by registered post.
176. Any Party may, from time to time, change its address or representative for receipt of notices and other communication provided for or required under these Articles by giving to all the other Parties not less than 10 (ten) days' prior written notice thereof.

EXERCISE OF INVESTOR RIGHTS

177. All rights available to the Investors under these Articles, including the right to issue notices, receive information, granting permissions, etc. may be exercised by the Investors by and under the hand of any of the Investor Director(s) and/or any other authorised representative/signatory nominated by the Investors from time to time.

TERMINATION

178. Chapter -II of the Articles shall stand terminated upon the earlier of (i) the Investors and/or

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their Affiliates ceasing to hold any Securities in the Company or (ii) automatically terminate in its entirety, upon receipt of final listing and trading approvals from the Stock Exchanges for commencement of trading of the Equity Shares without any further act or deed required on the part of any Party.

179. The rights and obligations of the Parties under the Articles, which either expressly or by their nature survive the termination of these Articles, shall not be extinguished by termination of these Articles. Without prejudice, for avoidance of doubt it is clarified that the provisions of [(a) Article 125 & 126 (Definitions and Interpretation), Article 127(a) (Constitution of the Board), and Article 174 (Notices), Article 189 (Governing Law and Dispute Resolution) shall survive the termination of this Article; and (b) unless prohibited by applicable Laws (including any observations passed by SEBI) and subject to receipt of approval of the shareholders of the Company by way of a special resolution at its first shareholders' meeting immediately after the consummation of the IPO, Article 188 (Rights of Investors in subsidiaries) to the limited extent of right of Investors to nominate one director on the board of subsidiary, shall survive the termination of this Articles.
180. Termination of Chapter II of these Articles for any cause whatsoever shall not relieve either Party of any liability, which at the time of termination has already accrued to that Party, or which may, thereafter, accrue in respect of any act or omission prior to such termination.

MANAGEMENT IN SITUATION OF CAUSE OR DISABILITY

181. In the event of happening of a Cause or Disability the Key Shareholder (or his successors as the case may be) will suggest to the Investors a succession plan. In the event the succession plan is not acceptable to the Investors, and the Key Shareholder and the Investors are not able to mutually resolve the matter within a period of 15 days of commencement of such discussions, the Key Shareholder and the Investors shall resolve the matter through a "Special Deadlock" resolution mechanics set out in this Article.
182. The Special Deadlock resolution mechanics will involve the appointment of one representative each, one by the Key Shareholder and one by the Investors and the two representatives so appointed shall suggest the manner in which the Company should be managed, which shall be binding on the Parties. In the event the two representatives are unable to arrive at a consensus, a third representative shall be appointed jointly by the two representatives and the decision of the majority of the representatives shall be binding on the Parties. The Key Shareholder and the Investors shall appoint the representatives within 15 (fifteen) days of the request. The representatives would arrive at a decision within a period of 2 (two) months from the date of their appointment.
183. Definitions. For purposes of Articles 181 & 182, the following terms shall have the meanings ascribed to them below:
- "Cause": a conviction of or entering a plea of guilty of the Key Shareholder to (i) any criminal offence or (ii) his wilful violation of any law, rule or regulation (other than a traffic violation or similar offense or violation outside of the course of employment which in no way adversely affects the Company or its reputation or the ability of the Key Shareholder to perform his employment-related duties or to represent the Company).

"Disability" or "Disabled": means the Key Shareholder's incapacity due to reasonably documented illness or an unforeseen event, the Key Shareholder shall have been unable for more than 12 weeks period to perform his duties with the Company on a full-time basis.

MISCELLANEOUS PROVISIONS

184. Further Rights Issuance

It is agreed between the Parties that in the event of the Company making a future issuance of Shares on a rights issue to the members of the Company, the Investors shall be entitled to participate in such rights issuance by the Company in proportion to the shareholding of the Investors on a Fully Diluted Basis, and where the Investors hold such Shares, unless otherwise agreed by the Investors in writing, all the rights of the Investors in respect of the Investor Securities shall also be available to the Investors in respect of such Shares, other than (a) Event of Default exit pursuant to the proviso to Article 173(c)(i), it being clarified that the exit applicable in such case for Clause 173(c)(i) is being clarified that the obligations of buy-back and Key Shareholder



put in respect of such Shares shall be exercised at FMV, or as may be otherwise mutually decided between the Key Shareholder, the Company and the Investors, (c) for the purpose of a Tag Along Right of the Investors under Article 151 other than the right to Tag Along pursuant to Article 151(a), and (d) for the gross-up indemnity provided to the Investors under Clause 16.9 of the Erstwhile IA to the extent of the rights issuance securities.

185. Fall Away of Rights

The rights available and the obligations applicable, to the Investors and the obligations of the Company and the Key Shareholder pursuant to the provisions of this Agreement shall continue to be available or, as the case may be, applicable to the Investors and/or their Affiliates till such time as the Investors and/or their Affiliates collectively own any Securities in the Company.

Provided that in the event the Investors in aggregate hold 3.25% Three Point two five per cent) or lower of the Equity Share capital of the Company on a fully diluted basis:

(a) on account of a dilution arising by fresh issuances of securities where the Investors have not transferred any Investor Securities, then in such an event the following rights of the Investors would continue:

(i) information rights under Article 143 to 147 (Information Rights, Inspection and Monitoring); (ii) pre-emptive rights under Article 157; (iii) a right to offer for sale any securities held by the Investors in any IPO, if any IPO is conducted by the Company; and (iv) Investors' right to sell its Securities; or

(b) on account of Transfer of such Shares by the Investors and/or their Affiliates, then in such an event the following rights of the Investors would continue:

(i) information rights under Article 143 to 147 (Information Rights, Inspection and Monitoring); (ii) a right to offer for sale any securities held by the Investors in any IPO, if any IPO is conducted by the Company; and (iii) pre-emptive rights under Article 157.

Apart from the above, all rights and obligations of the Parties under this Agreement shall cease.

186. Rights of Investor in subsidiaries

The Parties have agreed that the rights of the Investor set out in these Articles shall also extend to the wholly owned subsidiaries of the Company as created in the future.

The Parties have further agreed that in case of subsidiaries / joint venture companies other than wholly owned subsidiaries, if the Company has right to appoint only two directors on such a subsidiary or joint venture company, the Company will have a right to nominate such director(s) which will be decided by the Key Shareholder and such nominees need not include a nominee of the Investor and if the Company has right to appoint three or more directors on such subsidiary or joint venture company, the Company shall also, if required by the Investors appoint one director on the board of such subsidiary or joint venture company as decided by the Investors. Further in relation to any matters decided by such subsidiary or joint venture company, which is in the nature of a Reserved Matter under these Articles, then in such an event, if the Company has a say on such matter, such matter shall not be decided without the prior consent of the Investors. The Key Shareholder and the Company shall procure that the subsidiaries act in accordance with the Transaction Documents. It is clarified that the Investors shall not be required to hold any shares of the subsidiaries. The Key Shareholder and the Company shall exercise all their rights in relation to wholly owned subsidiaries so as to ensure that the rights of the Investor in respect of the wholly owned subsidiaries are fully given effect to. The Key Shareholder shall ensure that any matter proposed by the Investor shall be placed on the agenda of any meeting of the board of directors or shareholder meeting of subsidiaries of the Company.

187. Representative of Key Shareholder and Key Shareholder Group

For the purposes of the Transaction Documents, the Key Shareholder Group hereby irrevocably appoints the Key Shareholder to represent them with respect to all actions and decisions to be taken by or on behalf of each the members of the Key Shareholder Group. Accordingly, all the Key Shareholder Group hereby authorizes the Key Shareholder to represent the Key Shareholder and the Key Shareholder Group and take any decision which may be required to be taken, do all acts and



execute all documents and writings which are or may be required by any of the Key Shareholder Group for the proper and effective fulfilment of their respective rights and obligations under the Transaction Documents. Any action taken or deed performed or document executed by the Key Shareholder shall be deemed to be acts or deeds done or documents executed by all the Key Shareholder Group (as the case may be), and shall be binding on all the Key Shareholder Group (as the case may be) and shall be ratified by them without any demur or protest.

188. Liquidation Preference

In the event there occurs a liquidation of the Company, then the total proceeds from such liquidation after discharging or making provision for discharging the liabilities of the Company towards secured creditors, unsecured creditors (other than Key Shareholder and Key Shareholder Group Shareholders) and statutory dues shall be distributed:

- (i) first to the Investors on a pro rata basis among themselves, an amount which shall be the higher of ("Contractual Liquidity Amount")
 - (A) 1.15 times the aggregate of the IBEF II Investment Amount and IBEF IIA Investment Amount; or
 - (B) an amount which would be distributed to the Investors if all amounts available for distribution among the Shareholders including the Investors in proportion to the Securities held by them on a Fully Diluted Basis.
- (ii) second, to all the Shareholders of the Company, pro rata among themselves.

To enable the parties to enforce the provision of Article 188(i) above the Parties shall follow such mechanism as the Investors advisors may recommend at such time.

189. Governing Law and Dispute Resolution

- (a) If any dispute arises between the Investors on the one hand and any or all of the Company, Key Shareholder and Key Shareholder Group on the other hand, during the subsistence of the Transaction Documents or thereafter, in connection with or arising out of the validity, interpretation, implementation or alleged breach of any provision of the Transaction Documents or regarding a question, including the question as to whether the termination of any of the Transaction Documents by any Party has been legitimate, the disputing Parties shall endeavour to settle such dispute amicably, and the same shall in the first instant be resolved through mediation. The attempt to bring about an amicable settlement is considered to have failed as soon as one of the disputing Parties, after reasonable attempts, which attempt shall continue for not less than 30 (thirty) days, gives 15 (fifteen) days' notices thereof to the other disputing Parties in writing.
- (b) In case of such failure, the dispute shall be referred to a sole arbitrator to be mutually appointed by the Key Shareholder, Key Shareholder Group, the Company and the Investor within 5 (five) days from the expiry of the said 15 (fifteen) days' notice or in case of disagreement as to the appointment of the sole arbitrator, to 3 (three) arbitrators, the Investor nominating one arbitrator and the Key Shareholder, Company and the Key Shareholder Group jointly appointing the second arbitrator, who shall both be appointed within further 15 (fifteen) days from the expiry of the said 5 (five) days' period. The third arbitrator shall be appointed by the two arbitrators so appointed within 15 (fifteen) days of their appointment. The arbitration proceedings shall be governed by the (Indian) Arbitration and Conciliation Act, 1996.
- (c) The place of the arbitration shall be Mumbai, India.
- (d) The proceedings of arbitration shall be in the English language.
- (e) The arbitrator's award shall be substantiated in writing. The arbitral tribunal shall also decide on the costs of the arbitration proceedings. In the meanwhile, the Parties will bear the cost of the third arbitrator and arbitration meetings and venue equally.
- (f) The award shall be binding on the Parties subject to the applicable Laws in force and the award shall be enforceable in any competent court of law. The terms of the arbitration will require the arbitrators to conclude the arbitration



within 120 (one hundred and twenty) days of the date of reference of the dispute to arbitration.

- (g) These Articles shall be governed and construed in accordance with the Laws of India and subject to the provisions of arbitration as set out above, the courts at Mumbai, India will have exclusive jurisdiction.
- (h) For avoidance of doubt it is clarified that nothing in this Article 189 shall apply to disputes inter-se between the Company, Key Shareholder and Balance Shareholders.



**SCHEDULE 1
RESERVED MATTER ITEMS**

- (a) Approval of the annual budget including Business Plan or any alteration in the Business Plan;
- (b) Approval of annual accounts of the Company;
- (c) Any addition/deletion to the off-balance sheet liability structure of the Company including leasing, drawing on bank guarantees, Encumbrances, pledge or creation of lien and/or Transfer, which are not in the Ordinary Course of Business and exceeding a value which individually is more than or equal to Rs. 20,00,000 (Rupees Twenty Lakhs only) or together is more than Rs. 1,50,00,000 (Rupees One Crore fifty lakhs only) in a Financial Year (as per the written down value of the Assets as per the audited accounts of the previous Financial Year);
- (d) Change in any rights or benefits provided to the Investors;
- (e) Any changes to the Memorandum and Articles;
- (f) Creation of any new subsidiary(ies), joint ventures associate companies of the Company;
- (g) Change in the name or registered office of the Company;
- (h) Any transactions in relation to new activities with a Related Party of a value above Rs.20,00,000 (Rupees Twenty lakhs only) singly and Rs. 1,50,00,000 (Rupees One Crore fifty lakhs only) in the aggregate in a Financial Year other than as described in the Schedule 19 of the Agreement;
- (i) Any change in the capital structure including Share capital/ future issuances of Securities/ redemption of Securities/capital reduction / ESOP (other than the ESOP plan envisaged in these Articles) and/or any Transfer of Securities, other than as explicitly permitted under these Articles;
- (j) Change in the composition or size or structure of the Board;
- (k) Mergers, consolidation, acquisitions strategic/financial alliances by and of the Company, change of voting control, amalgamations, consolidations, spin-offs, sale of substantial Assets, insolvency, voluntary liquidation, winding up, compromise with creditors, other similar or related actions, either by or of the Company;
- (l) Listing, buy back, distribution of dividend, distribution of profits / commission other than dividend relating to any Securities;
- (m) Appointment/addition, dismissal, removal in the statutory auditors, internal auditors and Key Employees other than as agreed in these Articles;
- (n) Any deviations of more than 10% (Ten percent) from the Business Plan approved in accordance with these Articles and any deviation of more than 10% (Ten percent) from annual budget under major heads including revenues, direct costs including material and labour cost, employee cost, net working capital and debt equity ratio;
- (o) Availing of or providing guarantees and credit enhancements (other than in the Ordinary Course of Business) and entering into any derivative contracts which are not already incorporated in the annual budget approved by the Investors;

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**SCHEDULE 2
ANTI DILUTION ENTITLEMENT**

New Conversion Price for IBEF II Investment Amount or IBEF IIA Investment Amount ("NCP") = $IA/E * ((A+B) / (A+C))$

Anti-dilution number of Shares to be received by the relevant Investor ("ADS") = $(IA/NCP) - E$

IA = IBEF II Investment Amount or IBEF IIA Investment Amount

E = Aggregate of Investor Securities held such Investor

A = Equity Shares outstanding on a Fully-Diluted Basis prior to the Dilutive Issuance

B = Equity Shares issuable (on a Fully-Diluted Basis) if the Dilutive Issuance has been made at the price as determined in Schedule 5 of the Agreement

C = Equity Shares issued (on a Fully-Diluted Basis) at the Dilutive Issuance price

All calculations of the ADS shall be made to the nearest whole number. The Company shall not issue any fractional Equity Shares, and any fractions shall be rounded up to a whole number.



- (p) Purchase/disposal of fixed Assets for a consideration exceeding Rs 10,000,000 (Rupees One Crore only) or disposal of fixed Assets with a written down value exceeding Rs 10,000,000 (Rupees One Crore only) at the commencement of the relevant Financial Year other than Specific Properties
- (q) Changes to accounting or Tax policies or practices of the Company (other than those mandated by Indian GAAP);
- (r) Acquire or transfer or otherwise dispose off any Intellectual Property rights of or used by the Company where the transaction involves a sum in excess of Rs. 10,00,000 (Rupees Ten Lakh only);
- (s) Change in the nature of Company's Business or entering into any new business line or activity or in any way undertaking any new business initiative related to the Business, exceeding a sum of more than Rs 3,00,00,000 (Rupees Three Crore) either singly or in the aggregate in a Financial Year, which does not fall in the scope of the Company's operations as per the Business Plan, whether connected to the then Business operations or otherwise;
- (t) Entering into, modification or termination of any material contract in existence or proposed to be entered into by the Company and including waiver of any material default under or in relation to the breach of any material contract, other than in the Ordinary Course of Business;
- (u) Commencement or settlement/withdrawal of any litigation(s) (i) other than in the Ordinary Course of Business or (ii) in the Ordinary Course of Business and involving an aggregate sum in excess of Rs. 10,00,000 (Rupees Ten Lakh only) per litigation;
- (v) Entering into any arrangement or settlement with the debtors or creditors other than in the Ordinary Course of Business;
- (w) Change in the remuneration or material terms of employment of the Key Shareholder (other than as specifically agreed in the Transaction Documents) and Key Employees .



We, the several persons, whose names, addresses and description are subscribed here under are desirous of being formed into a company in accordance with and in pursuance of the provisions of this **Articles of Association**:

Name, address, description and occupation of subscribers (1)	Signature of Subscriber (2)	Name, address, description and occupation of witness (3)
1) Mr. Jawahar H. Hemrajani Father's Name: Hariram Hemrajani Address: Flat No.1003, Jimmy Tower, Sector -4, Vashi, Navi Mumbai – 400703. Occupation: Business	Sd/-	
2) Mr. Kamlesh A. Choudhary Father's Name: Arjun Choudhary. Address: 2504 B/ Avalon Bldg., Hiranandani Garden, Near Reliance Web World, Powai, Mumbai – 400076. Occupation: Business	Sd/-	
3) Mrs. Vinne J. Hemrajani Husband's Name: Jawahar Hemrajani Address: Flat No.1003, Jimmy Tower, Sector -4, Vashi, Navi Mumbai – 400703. Occupation: Housewife	Sd/-	Witness: 1 to 3 Subscriber: Mr. Uhas Jain S/o. Mahavir Prasad Jain Add: R.C. Jain & Associates 624, Corporate Center, Nirmal Lifestyle, L.B.S. Marg, Mulund West, Mumbai – 400080. Occupation: Business Sd/-

Place: Mumbai
Date : 24.05.2010



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Name, address, description and occupation of subscribers (1)	Signature of Subscriber (2)	Name, address, description and occupation of witness (3)
4) Mr. Sunita K. Choudhary Husband's Name: Kamlesh Choudhary Address: 2504 B/ Avalon Bldg., Hiranandani Garden, Near Reliance Web World, Powai, Mumbai – 400076. Occupation: Housewife	Sd/-	
5) Mr. Eshan J. Hemrajani Father's Name: Jawahar Hemrajani Address: Flat No.1003, Jimmy Tower, Sector -4, Vashi, Navi Mumbai – 400703. Occupation: Student	Sd/-	
6) Mrs. Duru H. Hemrajani Husband's Name: Hariram Hemrajani Address: Flat No.1003, Jimmy Tower, Sector -4, Vashi, Navi Mumbai – 400703. Occupation: Housewife	Sd/-	
7) Mr. Hariram H. Hemrajani Father's Name: Himatsingh Hemrajani Address: Flat No.1003, Jimmy Tower, Sector -4, Vashi, Navi Mumbai – 400703. Occupation: Retired	Sd/-	

Witness: 4 to 7 Subscriber:
Mr. Ulhas Jain
S/o. Mahavir Prasad Jain
Add: R.C. Jain & Associates
624, Corporate Center, Nirmal Lifestyle,
L.B.S. Marg, Mulund West, Mumbai – 400080.
Occupation: Business
Sd/-

Place: Mumbai
Date : 24.05.2010

